

The Finance Act, 2017

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[The Finance Act, 2017](#)

[No. 7 of 2017](#)

[\[Dated 31st March, 2017\]](#)

[Ministry of Law and Justice](#)

[\(Legislative Department\)](#)

[An Act to give effect to the financial proposals of the Central Government for the financial year 2017-2018.](#)

[Be it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:-](#)

[Chapter I](#)

[Preliminary](#)

[1.](#)

[Short title and commencement.](#)

(1)

This Act may be called the Finance Act, 2017.

(2)

Save as otherwise provided in this Act, sections 2 to 88 shall come into force on the 1st day of April, 2017.

Chapter II

Rates of Income-Tax

2.

Income-tax.

(1)

Subject to the provisions of sub-sections (2) and (3), for the assessment year commencing on the 1st day of April, 2017, income-tax shall be charged at the rates specified in Part I of the First Schedule and such tax shall be increased by a surcharge, for the purposes of the Union, calculated in each case in the manner provided therein.

(2)

In the cases to which Paragraph A of Part I of the First Schedule applies, where the assessee has, in the previous year, any net agricultural income exceeding five thousand rupees, in addition to total income, and the total income exceeds two lakh fifty thousand rupees, then,-

(a)

the net agricultural income shall be taken into account, in the manner provided in clause (b) [that is to say, as if the net agricultural income were comprised in the total income after the first two lakh fifty thousand rupees of the total income but without being liable to tax], only for the purpose of charging income-tax in respect of the total income; and

(b)

the income-tax chargeable shall be calculated as follows:-

(i)

the total income and the net agricultural income shall be aggregated and the amount of income-tax shall be determined in respect of the aggregate income at the rates specified in the said Paragraph A, as if such aggregate income were the total income;

(ii)

the net agricultural income shall be increased by a sum of two lakh fifty thousand rupees, and the amount of income-tax shall be determined in respect of the net agricultural income as so increased at the rates specified in the said Paragraph A, as if the net agricultural income as so increased were the total income;

(iii)

the amount of income-tax determined in accordance with sub-clause (i) shall be reduced by the amount of income-tax determined in accordance with sub-clause (ii) and the sum so arrived at shall be the income-tax in respect of the total income:

Provided that in the case of every individual, being a resident in India, who is of the age of sixty years or more but less than eighty years at any time during the previous year, referred to in item (II) of Paragraph A of Part I of the First Schedule, the provisions of this sub-section shall have effect as if for the words "two lakh fifty thousand rupees", the words "three lakh rupees" had been substituted:

Provided further that in the case of every individual, being a resident in India, who is of the age of eighty years or more at any time during the previous year, referred to in item (III) of Paragraph A of Part I of the First Schedule, the provisions of this sub-section shall have effect as if for the words "two lakh fifty thousand rupees", the words "five lakh rupees" had been substituted.

(3)

In cases to which the provisions of Chapter XII or Chapter XII-A or section 115JB or section 115JC or Chapter XII-FA or Chapter XII-FB or sub-section (1A) of section 161 or section 164 or section 164A or section 167B of the Income-tax Act, 1961 (hereinafter referred to as the Income-tax Act) apply, the tax chargeable shall be determined as provided in that Chapter or that section, and with reference to the rates imposed by sub-section (1) or the rates as specified in that Chapter or section, as the case may be:

Provided that the amount of income-tax computed in accordance with the provisions of section 111A or section 112 of the Income-tax Act shall be increased by a surcharge, for the purposes of the Union, as provided in Paragraph A, B, C, D or E, as the case may be, of Part I of the First Schedule:

Provided further that in respect of any income chargeable to tax under section 115A, 115AB, 115AC, 115ACA, 115AD, 115B, 115BB, 115BBA, 115BBC, 115BBD, 115BBDA, 115BBF, 115E, 115JB or 115JC of the Income-tax Act, the amount of income-tax computed under this sub-section shall be increased by a surcharge, for the purposes of the Union, calculated,-

(a)

in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, at the rate of fifteen per cent. of such income-tax, where the total income exceeds one crore rupees;

(b)

in the case of every co-operative society or firm or local authority, at the rate of twelve per cent. of such income-tax, where the total income exceeds one crore rupees;

(c)

in the case of every domestic company,-

(i)

at the rate of seven per cent. of such income-tax, where the total income exceeds one crore rupees but does not exceed ten crore rupees;

(ii)

at the rate of twelve per cent. of such income-tax, where the total income exceeds ten crore rupees;

(d)

in the case of every company, other than a domestic company,-

(i)

at the rate of two per cent. of such income-tax, where the total income exceeds one crore rupees but does not exceed ten crore rupees;

(ii)

at the rate of five per cent. of such income-tax, where the total income exceeds ten crore rupees:

Provided also that in the case of persons mentioned in (a) and (b) above, having total income chargeable to tax under section 115JC of the Income-tax Act, and such income exceeds one crore rupees, the total amount payable as income-tax on such income and surcharge thereon shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided also that in the case of every company having total income chargeable to tax under section 115JB of the Income-tax Act, and such income exceeds one crore rupees but does not exceed ten crore rupees, the total amount payable as income-tax on such income and surcharge thereon, shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided also that in the case of every company having total income chargeable to tax under section 115JB of the Income-tax Act, and such income exceeds ten crore rupees, the total amount payable as income-tax on such income and surcharge thereon, shall not exceed the total amount payable as income-tax and surcharge on a total income of ten crore rupees by more than the amount of income that exceeds ten crore rupees:

Provided also that in respect of any income chargeable to tax under clause (i) of sub-section (1) of section 115BBE of the Income-tax Act, the amount of income-tax computed under this sub-section shall be increased by a surcharge, for the purposes of the Union, calculated at the rate of twenty-five per cent. of such income-tax.

(4)

In cases in which tax has to be charged and paid under section 115-O or section 115QA or sub-section (2) of section 115R or section 115TA or section 115TD of the Income-tax Act, the tax shall be charged and paid at the rates as specified in those sections and shall be increased by a surcharge, for the purposes of the Union, calculated at the rate of twelve per cent. of such tax.

(5)

In cases in which tax has to be deducted under sections 193, 194, 194A, 194B, 194BB, 194D, 194LBA, 194LBB, 194LBC and 195 of the Income-tax Act, at the rates in force, the deductions shall be made at the rates specified in Part II of the First Schedule and shall be increased by a surcharge, for the purposes of the Union, calculated in cases wherever prescribed, in the manner provided therein.

(6)

In cases in which tax has to be deducted under sections 192A, 194C, 194DA, 194E, 194EE, 194F, 194G, 194H, 194-I, 194-IA, 194-IB, 194-IC, 194J, 194LA, 194LB, 194LBA, 194LBB, 194LBC, 194LC, 194LD, 196B, 196C and 196D of the Income-tax Act, the deductions shall be made at the rates specified in those sections and shall be increased by a surcharge, for the purposes of the Union,-

(a)

in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, being a non-resident, calculated,-

(i)

at the rate of ten per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds fifty lakh rupees but does not exceed one crore rupees;

(ii)

at the rate of fifteen per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds one crore rupees;

(b)

in the case of every co-operative society or firm, being a non-resident, calculated at the rate of twelve per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds one crore rupees;

(c)

in the case of every company, other than a domestic company, calculated,-

(i)

at the rate of two per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds one crore rupees but does not exceed ten crore rupees;

(ii)

at the rate of five per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds ten crore rupees.

(7)

In cases in which tax has to be collected under the proviso to section 194B of the Income-tax Act, the collection shall be made at the rates specified in Part II of the First Schedule, and shall be increased by a surcharge, for the purposes of the Union, calculated, in cases wherever prescribed, in the manner provided therein.

(8)

In cases in which tax has to be collected under section 206C of the Income-tax Act, the collection shall be made at the rates specified in that section and shall be increased by a surcharge, for the purposes of the Union,-

(a)

in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, being a non-resident, calculated,-

(i)

at the rate of ten per cent. of such tax, where the amount or the aggregate of such amounts collected and subject to the collection exceeds fifty lakh rupees but does not exceed one crore rupees;

(ii)

at the rate of fifteen per cent. of such tax, where the amount or the aggregate of such amounts collected and subject to the collection exceeds one crore rupees;

(b)

in the case of every co-operative society or firm, being a non-resident, calculated at the rate of twelve per cent. of such tax, where the amount or the aggregate of such amounts collected and subject to the collection exceeds one crore rupees;

(c)

in the case of every company, other than a domestic company, calculated,-

(i)

at the rate of two per cent. of such tax, where the amount or the aggregate of such amounts collected and subject to the

collection exceeds one crore rupees but does not exceed ten crore rupees;

(ii)

at the rate of five per cent. of such tax, where the amount or the aggregate of such amounts collected and subject to the collection exceeds ten crore rupees.

(9)

Subject to the provisions of sub-section (10), in cases in which income-tax has to be charged under sub-section (4) of section 172 or sub-section (2) of section 174 or section 174A or section 175 or sub-section (2) of section 176 of the Income-tax Act or deducted from, or paid on, income chargeable under the head "Salaries" under section 192 of the said Act or in which the "advance tax" payable under Chapter XVII-C of the said Act has to be computed at the rate or rates in force, such income-tax or, as the case may be, "advance tax" shall be charged, deducted or computed at the rate or rates specified in Part III of the First Schedule and such tax shall be increased by a surcharge, for the purposes of the Union, calculated in such cases and in such manner as provided therein:

Provided that in cases to which the provisions of Chapter XII or Chapter XII-A or section 115JB or section 115JC or Chapter XII-FA or Chapter XII-FB or sub-section (1A) of section 161 or section 164 or section 164A or section 167B of the Income-tax Act apply, "advance tax" shall be computed with reference to the rates imposed by this sub-section or the rates as specified in that Chapter or section, as the case may be:

Provided further that the amount of "advance tax" computed in accordance with the provisions of section 111A or section 112 of the Income-tax Act shall be increased by a surcharge, for the purposes of the Union, as provided in Paragraph A, B, C, D or E, as the case may be, of Part III of the First Schedule:

Provided also that in respect of any income chargeable to tax under section 115A, 115AB, 115AC, 115ACA, 115AD, 115B, 115BA, 115BB, 115BBA, 115BBC, 115BBD, 115BBDA, 115BBF, 115BBG, 115E, 115JB or 115JC of the Income-tax Act, "advance tax" computed under the first proviso shall be increased by a surcharge, for the purposes of the Union, calculated,-

(a)

in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act,-

(i)

at the rate of ten per cent. of such "advance tax", where the total income exceeds fifty lakh rupees but does not exceed one crore rupees;

(ii)

at the rate of fifteen per cent. of such "advance tax", where the total income exceeds one crore rupees;

(b)

in the case of every co-operative society or firm or local authority at the rate of twelve per cent. of such "advance tax", where the total income exceeds one crore rupees;

(c)

in the case of every domestic company,-

(i)

at the rate of seven per cent. of such "advance tax", where the total income exceeds one crore rupees but does not exceed ten crore rupees;

(ii)

at the rate of twelve per cent. of such "advance tax", where the total income exceeds ten crore rupees;

(d)

in the case of every company, other than a domestic company,-

(i)

at the rate of two per cent. of such "advance tax", where the total income exceeds one crore rupees but does not exceed ten crore rupees;

(ii)

at the rate of five per cent. of such "advance tax", where the total income exceeds ten crore rupees:

Provided also that in the case of persons mentioned in (a) above, having total income chargeable to tax under section 115JC of the Income-tax Act, and such income exceeds,-

(a)

fifty lakh rupees but does not exceed one crore rupees, the total amount payable as "advance tax" on such income and surcharge thereon shall not exceed the total amount payable as "advance tax" on a total income of fifty lakh rupees by more than the amount of income that exceeds fifty lakh rupees;

(b)

one crore rupees, the total amount payable as "advance tax" on such income and surcharge thereon shall not exceed the total amount payable as "advance tax" on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided also that in the case of persons mentioned in (b) above, having total income chargeable to tax under section 115JC of the Income-tax Act, and such income exceeds one crore rupees, the total amount payable as "advance tax" on such income and surcharge thereon shall not exceed the total amount payable as "advance tax" on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided also that in the case of every company having total income chargeable to tax under section 115JB of the Income-tax Act, and such income exceeds one crore rupees but does not exceed ten crore rupees, the total amount payable as "advance tax" on such income and surcharge thereon, shall not exceed the total amount payable as "advance tax" on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided also that in the case of every company having total income chargeable to tax under section 115JB of the Income-tax Act, and such income exceeds ten crore rupees, the total amount payable as "advance tax" on such income and surcharge thereon, shall not exceed the total amount payable as "advance tax" and surcharge on a total income of ten crore rupees by more than the amount of income that exceeds ten crore rupees:

Provided also that in respect of any income chargeable to tax under clause (i) of sub-section (1) of section 115BBE of the Income-tax Act, the "advance tax" computed under the first proviso shall be increased by a surcharge, for the purposes of the Union, calculated at the rate of twenty-five per cent. of such "advance tax".

(10)

In cases to which Paragraph A of Part III of the First Schedule applies, where the assessee has, in the previous year or, if by virtue of any provision of the Income-tax Act, income-tax is to be charged in respect of the income of a period other than the previous year, in such other period, any net agricultural income exceeding five thousand rupees, in addition to total income and the total income exceeds two lakh fifty thousand rupees, then, in charging income-tax under sub-section (2) of section 174 or section 174A or section 175 or sub-section (2) of section 176 of the said Act or in computing the "advance tax" payable under Chapter XVII-C of the said Act, at the rate or rates in force,-

(a)

the net agricultural income shall be taken into account, in the manner provided in clause (b) [that is to say, as if the net agricultural income were comprised in the total income after the first two lakh fifty thousand rupees of the total income but without being liable to tax], only for the purpose of charging or computing such income-tax or, as the case may be, "advance tax" in respect of the total income; and

(b)

such income-tax or, as the case may be, "advance tax" shall be so charged or computed as follows:-

(i)

the total income and the net agricultural income shall be aggregated and the amount of income-tax or "advance tax" shall be determined in respect of the aggregate income at the rates specified in the said Paragraph A, as if such aggregate income were the total income;

(ii)

the net agricultural income shall be increased by a sum of two lakh fifty thousand rupees, and the amount of income-tax or "advance tax" shall be determined in respect of the net agricultural income as so increased at the rates specified in the said Paragraph A, as if the net agricultural income were the total income;

(iii)

the amount of income-tax or "advance tax" determined in accordance with sub-clause (i) shall be reduced by the amount of income-tax or, as the case may be, "advance tax" determined in accordance with sub-clause (ii) and the sum so arrived at shall be the income-tax or, as the case may be, "advance tax" in respect of the total income:

Provided that in the case of every individual, being a resident in India, who is of the age of sixty years or more but less than eighty years at any time during the previous year, referred to in item (II) of Paragraph A of Part III of the First

Schedule, the provisions of this sub-section shall have effect as if for the words "two lakh fifty thousand rupees", the words "three lakh rupees" had been substituted:

Provided further that in the case of every individual, being a resident in India, who is of the age of eighty years or more at any time during the previous year, referred to in item (III) of Paragraph A of Part III of the First Schedule, the provisions of this sub-section shall have effect as if for the words "two lakh fifty thousand rupees", the words "five lakh rupees" had been substituted:

Provided also that the amount of income-tax or "advance tax" so arrived at, shall be increased by a surcharge for the purposes of the Union, calculated in each case, in the manner provided therein.

(11)

The amount of income-tax as specified in sub-sections (1) to (10) and as increased by the applicable surcharge, for the purposes of the Union, calculated in the manner provided therein, shall be further increased by an additional surcharge, for the purposes of the Union, to be called the "Education Cess on income-tax", calculated at the rate of two per cent. of such income-tax and surcharge so as to fulfil the commitment of the Government to provide and finance universalised quality basic education:

Provided that nothing contained in this sub-section shall apply to cases in which tax is to be deducted or collected under the sections of the Income-tax Act mentioned in sub-sections (5), (6), (7) and (8), if the income subjected to deduction of tax at source or collection of tax at source is paid to a domestic company and any other person who is resident in India.

(12)

The amount of income-tax as specified in sub-sections (1) to (10) and as increased by the applicable surcharge, for the purposes of the Union, calculated in the manner provided therein, shall also be increased by an additional surcharge, for the purposes of the Union, to be called the "Secondary and Higher Education Cess on income-tax", calculated at the rate of one per cent. of such income-tax and surcharge so as to fulfil the commitment of the Government to provide and finance secondary and higher education:

Provided that nothing contained in this sub-section shall apply to cases in which tax is to be deducted or collected under the sections of the Income-tax Act mentioned in sub-sections (5), (6), (7) and (8), if the income subjected to deduction of tax at source or collection of tax at source is paid to a domestic company and any other person who is resident in India.

(13)

For the purposes of this section and the First Schedule,-

(a)

"domestic company" means an Indian company or any other company which, in respect of its income liable to income-tax under the Income-tax Act, for the assessment year commencing on the 1st day of April, 2017, has made the prescribed arrangements for the declaration and payment within India of the dividends (including dividends on preference shares) payable out of such income;

(b)

"insurance commission" means any remuneration or reward, whether by way of commission or otherwise, for soliciting or procuring insurance business (including business relating to the continuance, renewal or revival of policies of insurance);

(c)

"net agricultural income" in relation to a person, means the total amount of agricultural income, from whatever source derived, of that person computed in accordance with the rules contained in Part IV of the First Schedule;

(d)

all other words and expressions used in this section and the First Schedule but not defined in this sub-section and defined in the Income-tax Act shall have the meanings, respectively, assigned to them in that Act.

Chapter III

Direct Taxes

Income-Tax

3.

Amendment of section 2.

- In section 2 of the Income-tax Act,-

(I)

in clause (24), after sub-clause (xvii), the following sub-clause shall be inserted, namely: -

"(xviiia) any sum of money or value of property referred to in clause (x) of sub-section (2) of section 56;"

(II)

in clause (42A), -

(a)

in the third proviso [as inserted by section 3 of the Finance Act, 2016], after the words and brackets "a company (not being a share listed in a recognised stock exchange in India)", the words "or an immovable property, being land or building or both," shall be inserted with effect from the 1st day of April, 2018;

(b)

in Explanation 1, in clause (i),-

(A)

after sub-clause (he), the following sub-clause shall be inserted with effect from the 1st day of April, 2018, namely:-

"(hf) in the case of a capital asset, being equity shares in a company, which becomes the property of the assessee in consideration of a transfer referred to in clause (xb) of section 47, there shall be included the period for which the preference shares were held by the assessee;"

(B)

after sub-clause (hf) as so inserted, the following sub-clause shall be inserted, namely:-

"(hg) in the case of a capital asset, being a unit or units, which becomes the property of the assessee in consideration of a transfer referred to in clause (xix) of section 47, there shall be included the period for which the unit or units in the consolidating plan of a mutual fund scheme were held by the assessee;"

4.

Amendment of section 9.

- In section 9 of the Income-tax Act, in sub-section (1), in clause (i), in Explanation 5,-

(i)

the following proviso shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 2012, namely:-

"Provided that nothing contained in this Explanation shall apply to an asset or capital asset, which is held by a non-resident by way of investment, directly or indirectly, in a Foreign Institutional Investor as referred to in clause (a) of the Explanation to section 115AD for an assessment year commencing on or after the 1st day of April, 2012 but before the 1st day of April, 2015;"

(ii)

after the first proviso as so inserted, the following proviso shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 2015, namely: -

"Provided further that nothing contained in this Explanation shall apply to an asset or capital asset, which is held by a non-resident by way of investment, directly or indirectly, in Category-I or Category-II foreign portfolio investor under the Securities and Exchange Board of India (Foreign Portfolio Investors) Regulations, 2014, made under the Securities and Exchange Board of India Act, 1992."

5.

Amendment of section 9A.

- In section 9A of the Income-tax Act, in sub-section (3), in clause (j), after the proviso, the following proviso shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 2016, namely:-

"Provided further that nothing contained in this clause shall apply to a fund which has been wound up in the previous year;"

6.

Amendment of section 10.

- In section 10 of the Income-tax Act,-

(a)

in clause (4), in sub-clause (ii), in the proviso, for the word, brackets and letter "clause (q)", the word, brackets and letter "clause (w)" shall be substituted and shall be deemed to have been substituted with effect from the 1st day of April, 2013;

(b)

after clause (12A) [as inserted by section 7 of the Finance Act, 2016], the following clause shall be inserted with effect

from the 1st day of April, 2018, namely:-

"(12B) any payment from the National Pension System Trust to an employee under the pension scheme referred to in section 80CCD, on partial withdrawal made out of his account in accordance with the terms and conditions, specified under the Pension Fund Regulatory and Development Authority Act, 2013 and the regulations made thereunder, to the extent it does not exceed twenty-five per cent. of the amount of contributions made by him;"

(c)

in clause (23C),-

(I)

after sub-clause (iiiiaaa), the following sub-clause shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 1998, namely:-

"(iiiiaaaa) the Chief Minister's Relief Fund or the Lieutenant Governor's Relief Fund in respect of any State or Union territory as referred to in sub-clause (iiihf) of clause (a) of sub-section (2) of section 80G; or";

(II)

after the eleventh proviso, the following proviso shall be inserted with effect from the 1st day of April, 2018, namely:-

"Provided also that any amount credited or paid out of income of any fund or trust or institution or any university or other educational institution or any hospital or other medical institution referred to in sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via), to any trust or institution registered under section 12AA, being voluntary contribution made with a specific direction that they shall form part of the corpus of the trust or institution, shall not be treated as application of income to the objects for which such fund or trust or institution or university or educational institution or hospital or other medical institution, as the case may be, is established:"

(d)

after clause (37), the following clause shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 2015, namely:-

`(37A) any income chargeable under the head "Capital gains" in respect of transfer of a specified capital asset arising to an assessee, being an individual or a Hindu undivided family, who was the owner of such specified capital asset as on the 2nd day of June, 2014 and transfers that specified capital asset under the Land Pooling Scheme (herein referred to as "the scheme") covered under the Andhra Pradesh Capital City Land Pooling Scheme (Formulation and Implementation) Rules, 2015 made under the provisions of the Andhra Pradesh Capital Region Development Authority Act, 2014 and the rules, regulations and Schemes made under the said Act.

Explanation. - For the purposes of this clause, "specified capital asset" means,-

(a)

the land or building or both owned by the assessee as on the 2nd day of June, 2014 and which has been transferred under the scheme; or

(b)

the land pooling ownership certificate issued under the scheme to the assessee in respect of land or building or both referred to in clause (a); or

(c)

the reconstituted plot or land, as the case may be, received by the assessee in lieu of land or building or both referred to in clause (a) in accordance with the scheme, if such plot or land, as the case may be, so received is transferred within two years from the end of the financial year in which the possession of such plot or land was handed over to him;"

(e)

in clause (38), after the second proviso and before the Explanation [as inserted by section 7 of the Finance Act, 2016], the following proviso shall be inserted with effect from the 1st day of April, 2018, namely:-

"Provided also that nothing contained in this clause shall apply to any income arising from the transfer of a long-term capital asset, being an equity share in a company, if the transaction of acquisition, other than the acquisition notified by the Central Government in this behalf, of such equity share is entered into on or after the 1st day of October, 2004 and such transaction is not chargeable to securities transaction tax under Chapter VII of the Finance (No. 2) Act, 2004.";

(f)

after clause (48A), the following clause shall be inserted with effect from the 1st day of April, 2018, namely:-

"(48B) any income accruing or arising to a foreign company on account of sale of leftover stock of crude oil, if any, from the facility in India after the expiry of the agreement or the arrangement referred to in clause (48A) subject to such

conditions as may be notified by the Central Government in this behalf;"

7.

Amendment of section 10AA.

- In section 10AA of the Income-tax Act, after sub-section (1), the following Explanation shall be inserted with effect from the 1st day of April, 2018, namely:-

"Explanation. - For the removal of doubts, it is hereby declared that the amount of deduction under this section shall be allowed from the total income of the assessee computed in accordance with the provisions of this Act, before giving effect to the provisions of this section and the deduction under this section shall not exceed such total income of the assessee."

8.

Amendment of section 11.

- In section 11 of the Income-tax Act, in sub-section (1), the Explanation below clause (d) shall be numbered as Explanation 1 thereof and after Explanation 1 as so numbered, the following Explanation shall be inserted with effect from the 1st day of April, 2018, namely:-

"Explanation 2. - Any amount credited or paid, out of income referred to in clause (a) or clause (b) read with Explanation 1, to any other trust or institution registered under section 12AA, being contribution with a specific direction that they shall form part of the corpus of the trust or institution, shall not be treated as application of income for charitable or religious purposes."

9.

Amendment of section 12A.

- In section 12A of the Income-tax Act, in sub-section (1), with effect from the 1st day of April, 2018,-

(i)

after clause (aa), the following clause shall be inserted, namely:-

"(ab) the person in receipt of the income has made an application for registration of the trust or institution, in a case where a trust or an institution has been granted registration under section 12AA or has obtained registration at any time under section 12A [as it stood before its amendment by the Finance (No. 2) Act, 1996], and, subsequently, it has adopted or undertaken modifications of the objects which do not conform to the conditions of registration, in the prescribed form and manner, within a period of thirty days from the date of said adoption or modification, to the Principal Commissioner or Commissioner and such trust or institution is registered under section 12AA;"

(ii)

after clause (b), the following clause shall be inserted, namely:-

"(ba) the person in receipt of the income has furnished the return of income for the previous year in accordance with the provisions of sub-section (4A) of section 139, within the time allowed under that section."

10.

Amendment of section 12AA.

- In section 12AA of the Income-tax Act, with effect from the 1st day of April, 2018,-

(a)

in sub-section (1), after the word, brackets and letters "clause (aa)", the words, brackets and letters "or clause (ab)" shall be inserted;

(b)

in sub-section (2), after the word, brackets and letters "clause (aa)", the words, brackets and letters "or clause (ab)" shall be inserted.

11.

Amendment of section 13A.

- In section 13A of the Income-tax Act, with effect from the 1st day of April, 2018,-

(I)

in the first proviso,-

(i)

in clause (b),-

(A)

after the words "such voluntary contribution", the words "other than contribution by way of electoral bond" shall be

inserted;

(B)

the word "and" occurring at the end shall be omitted;

(ii)

in clause (c), the word "; and" shall be inserted at the end;

(iii)

after clause (c), the following clause shall be inserted, namely:-

`(d) no donation exceeding two thousand rupees is received by such political party otherwise than by an account payee cheque drawn on a bank or an account payee bank draft or use of electronic clearing system through a bank account or through electoral bond.

Explanation. - For the purposes of this proviso, "electoral bond" means a bond referred to in the Explanation to sub-section (3) of section 31 of the Reserve Bank of India Act, 1934.;

(II)

after the second proviso, the following proviso shall be inserted, namely:-

"Provided also that such political party furnishes a return of income for the previous year in accordance with the provisions of sub-section (4B) of section 139 on or before the due date under that section."

12.

Amendment of section 23.

- In section 23 of the Income-tax Act, after sub-section (4), the following sub-section shall be inserted with effect from the 1st day of April, 2018, namely:-

"(5) Where the property consisting of any building or land appurtenant thereto is held as stock-in-trade and the property or any part of the property is not let during the whole or any part of the previous year, the annual value of such property or part of the property, for the period up to one year from the end of the financial year in which the certificate of completion of construction of the property is obtained from the competent authority, shall be taken to be nil."

13.

Amendment of section 35AD.

- In section 35AD of the Income-tax Act, in sub-section (8), in clause (f), after the words "shall not include", the words "any expenditure in respect of which the payment or aggregate of payments made to a person in a day, otherwise than by an account payee cheque drawn on a bank or an account payee bank draft or use of electronic clearing system through a bank account, exceeds ten thousand rupees or" shall be inserted with effect from the 1st day of April, 2018.

14.

Amendment of section 36.

- In section 36 of the Income-tax Act, in sub-section (1), in clause (viiia), in sub-clause (a), for the words "seven and one-half per cent.", the words "eight and one-half per cent." shall be substituted with effect from the 1st day of April, 2018.

15.

Amendment of section 40A.

- In section 40A of the Income-tax Act,-

(a)

in sub-section (2), in clause (a), in the proviso, after the words "Provided that", the words, figures and letters "for an assessment year commencing on or before the 1st day of April, 2016" shall be inserted;

(b)

with effect from the 1st day of April, 2018,-

(A)

in sub-section (3), for the words "exceeds twenty thousand rupees", the words "or use of electronic clearing system through a bank account, exceeds ten thousand rupees," shall be substituted;

(B)

in sub-section (3A),-

(i)

after the words "account payee bank draft," the words "or use of electronic clearing system through a bank account" shall be inserted;

(ii)
for the words "twenty thousand rupees", the words "ten thousand rupees" shall be substituted;

(iii)
in the first proviso, for the words "exceeds twenty thousand rupees", the words "or use of electronic clearing system through a bank account, exceeds ten thousand rupees," shall be substituted;

(iv)
in the second proviso, for the words "twenty thousand rupees", the words "ten thousand rupees" shall be substituted;

(C)
in sub-section (4),-

(i)
after the words "account payee bank draft", the words "or use of electronic clearing system through a bank account" shall be inserted;

(ii)
after the words "such cheque or draft", the words "or electronic clearing system" shall be inserted.

16.

Amendment of section 43.

- In section 43 of the Income-tax Act, in clause (1), with effect from the 1st day of April, 2018,-

(a)
after the proviso and before Explanation 1, the following proviso shall be inserted, namely:-
"Provided further that where the assessee incurs any expenditure for acquisition of any asset or part thereof in respect of which a payment or aggregate of payments made to a person in a day, otherwise than by an account payee cheque drawn on a bank or an account payee bank draft or use of electronic clearing system through a bank account, exceeds ten thousand rupees, such expenditure shall be ignored for the purposes of determination of actual cost.";

(b)
in Explanation 13, the following proviso shall be inserted, namely:-
"Provided that where any capital asset in respect of which deduction or part of deduction allowed under section 35AD is deemed to be the income of the assessee in accordance with the provisions of sub-section (7B) of the said section, the actual cost of the asset to the assessee shall be the actual cost to the assessee, as reduced by an amount equal to the amount of depreciation calculated at the rate in force that would have been allowable had the asset been used for the purpose of business since the date of its acquisition.".

17.

Amendment of section 43B.

- In section 43B of the Income-tax Act, with effect from the 1st day of April, 2018,-

(i)
in clause (e), after the words "scheduled bank", the words "or a co-operative bank other than a primary agricultural credit society or a primary co-operative agricultural and rural development bank" shall be inserted;

(ii)
in Explanation 4, after clause (c), the following clause shall be inserted, namely:-
"(d) "co-operative bank", "primary agricultural credit society" and "primary co-operative agricultural and rural development bank" shall have the meanings respectively assigned to them in the Explanation to sub-section (4) of section 80P.".

18.

Amendment of section 43D.

- In section 43D of the Income-tax Act, with effect from the 1st day of April, 2018,-

(i)
in clause (a), after the words "scheduled bank or", the words "a co-operative bank other than a primary agricultural credit society or a primary co-operative agricultural and rural development bank or" shall be inserted;

(ii)
in the long line, after the words "scheduled bank or", the words "a co-operative bank other than a primary agricultural credit society or a primary co-operative agricultural and rural development bank or" shall be inserted;

(iii)

in the Explanation, after clause (f), the following clause shall be inserted, namely:-

`(g) "co-operative bank", "primary agricultural credit society" and "primary co-operative agricultural and rural development bank" shall have the meanings respectively assigned to them in the Explanation to sub-section (4) of section 80P.'.

19.

Amendment of section 44AA.

- In section 44AA of the Income-tax Act, in sub-section (2), the following provisos shall be inserted with effect from the 1st day of April, 2018, namely:-

`Provided that in the case of a person being an individual or a Hindu undivided family, the provisions of clause (i) and clause (ii) shall have effect, as if for the words "one lakh twenty thousand rupees", the words "two lakh fifty thousand rupees" had been substituted:

Provided further that in the case of a person being an individual or a Hindu undivided family, the provisions of clause (i) and clause (ii) shall have effect, as if for the words "ten lakh rupees", the words "twenty-five lakh rupees" had been substituted.'.

20.

Amendment of section 44AB.

- In section 44AB of the Income-tax Act,-

(i)

before the first proviso, the following proviso shall be inserted, namely:-

"Provided that this section shall not apply to the person, who declares profits and gains for the previous year in accordance with the provisions of sub-section (1) of section 44AD and his total sales, turnover or gross receipts, as the case may be, in business does not exceed two crore rupees in such previous year:";

(ii)

in the first proviso, for the words "Provided that", the words "Provided further that" shall be substituted;

(iii)

in the second proviso, for the words "Provided further", the words "Provided also" shall be substituted.

21.

Amendment of section 44AD.

- In section 44AD of the Income-tax Act, in sub-section (1), the following proviso shall be inserted, namely:-

`Provided that this sub-section shall have effect as if for the words "eight per cent.", the words "six per cent." had been substituted, in respect of the amount of total turnover or gross receipts which is received by an account payee cheque or an account payee bank draft or use of electronic clearing system through a bank account during the previous year or before the due date specified in sub-section (1) of section 139 in respect of that previous year.'.

22.

Amendment of section 45.

- In section 45 of the Income-tax Act, after sub-section (5) and the Explanation thereto, the following sub-section shall be inserted with effect from the 1st day of April, 2018, namely:-

`(5A) Notwithstanding anything contained in sub-section (1), where the capital gain arises to an assessee, being an individual or a Hindu undivided family, from the transfer of a capital asset, being land or building or both, under a specified agreement, the capital gains shall be chargeable to income-tax as income of the previous year in which the certificate of completion for the whole or part of the project is issued by the competent authority; and for the purposes of section 48, the stamp duty value, on the date of issue of the said certificate, of his share, being land or building or both in the project, as increased by the consideration received in cash, if any, shall be deemed to be the full value of the consideration received or accruing as a result of the transfer of the capital asset:

Provided that the provisions of this sub-section shall not apply where the assessee transfers his share in the project on or before the date of issue of the said certificate of completion, and the capital gains shall be deemed to be the income of the previous year in which such transfer takes place and the provisions of this Act, other than the provisions of this sub-section, shall apply for the purpose of determination of full value of consideration received or accruing as a result of such transfer.

Explanation. - For the purposes of this sub-section, the expression-

(i)

"competent authority" means the authority empowered to approve the building plan by or under any law for the time being in force;

(ii)

"specified agreement" means a registered agreement in which a person owning land or building or both, agrees to allow another person to develop a real estate project on such land or building or both, in consideration of a share, being land or building or both in such project, whether with or without payment of part of the consideration in cash;

(iii)

"stamp duty value" means the value adopted or assessed or assessable by any authority of the Government for the purpose of payment of stamp duty in respect of an immovable property being land or building or both.'

23.

Amendment of section 47.

- In section 47 of the Income-tax Act, with effect from the 1st day of April, 2018,-

(a)

after clause (viiia), the following clause shall be inserted, namely:-

"(viiiaa) any transfer, made outside India, of a capital asset being rupee denominated bond of an Indian company issued outside India, by a non-resident to another non-resident;"

(b)

after clause (xa), the following clause shall be inserted, namely:-

"(xb) any transfer by way of conversion of preference shares of a company into equity shares of that company;"

24.

Amendment of section 48.

- In section 48 of the Income-tax Act, with effect from the 1st day of April, 2018,-

(a)

in the fifth proviso, for the word "subscribed", the word "held" shall be substituted;

(b)

in the Explanation, in clause (iii), for the figures, letters and words "1st day of April, 1981", the figures, letters and words "1st day of April, 2001" shall be substituted.

25.

Amendment of section 49.

- In section 49 of the Income-tax Act,-

(a)

in sub-section (1), in clause (iii), in sub-clause (e), after the word, brackets, figures and letter "clause (vib)", the words, brackets, figures and letter "or clause (vic)" shall be inserted with effect from the 1st day of April, 2018;

(b)

after sub-section (2AD), the following sub-section shall be inserted with effect from the 1st day of April, 2018, namely:-

"(2AE) Where the capital asset, being equity share of a company, became the property of the assessee in consideration of a transfer referred to in clause (xb) of section 47, the cost of acquisition of the asset shall be deemed to be that part of the cost of the preference share in relation to which such asset is acquired by the assessee.";

(c)

after sub-section (2AE) as so inserted, the following sub-section shall be inserted, namely:-

"(2AF) Where the capital asset, being a unit or units in a consolidated plan of a mutual fund scheme, became the property of the assessee in consideration of a transfer referred to in clause (xix) of section 47, the cost of acquisition of the asset shall be deemed to be the cost of acquisition to him of the unit or units in the consolidating plan of the scheme of the mutual fund.";

(d)

in sub-section (4), after the words, brackets, figures and letter "or clause (viiia)" at both the places where they occur, the words, brackets and figure "or clause (x)" shall be inserted;

(e)

after sub-section (5) [as inserted by section 30 of the Finance Act, 2016], the following sub-sections shall be inserted with effect from the 1st day of April, 2018, namely:-

`(6) Where the capital gain arises from the transfer of a specified capital asset referred to in clause (c) of the Explanation

to clause (37A) of section 10, which has been transferred after the expiry of two years from the end of the financial year in which the possession of such asset was handed over to the assessee, the cost of acquisition of such specified capital asset shall be deemed to be its stamp duty value as on the last day of the second financial year after the end of the financial year in which the possession of the said specified capital asset was handed over to the assessee.

Explanation. - For the purposes of this sub-section, "stamp duty value" means the value adopted or assessed or assessable by any authority of the State Government for the purpose of payment of stamp duty in respect of an immovable property.

(7)

Where the capital gain arises from the transfer of a capital asset, being share in the project, in the form of land or building or both, referred to in sub-section (5A) of section 45, not being the capital asset referred to in the proviso to the said sub-section, the cost of acquisition of such asset, shall be the amount which is deemed as full value of consideration in that sub-section.';

(f)

after sub-section (7) as so inserted, the following sub-section shall be inserted and shall be deemed to have been inserted with effect from the 1st day of June, 2016, namely:-

"(8) Where the capital gain arises from the transfer of an asset, being the asset held by a trust or an institution in respect of which accreted income has been computed and the tax has been paid thereon in accordance with the provisions of Chapter XII-EB, the cost of acquisition of such asset shall be deemed to be the fair market value of the asset which has been taken into account for computation of accreted income as on the specified date referred to in sub-section (2) of section 115TD."

26.

Insertion of new section 50CA.

- After section 50C of the Income-tax Act, the following section shall be inserted with effect from the 1st day of April, 2018, namely:-

`50CA. Special provision for full value of consideration for transfer of share other than quoted share. - Where the consideration received or accruing as a result of the transfer by an assessee of a capital asset, being share of a company other than a quoted share, is less than the fair market value of such share determined in such manner as may be prescribed, the value so determined shall, for the purposes of section 48, be deemed to be the full value of consideration received or accruing as a result of such transfer.

Explanation. - For the purposes of this section, "quoted share" means the share quoted on any recognised stock exchange with regularity from time to time, where the quotation of such share is based on current transaction made in the ordinary course of business.'

27.

Amendment of section 54EC.

- In section 54EC of the Income-tax Act, in sub-section (3), in the Explanation, in clause (ba), for the words and figures "the Companies Act, 1956" occurring at the end, the words and figures "the Companies Act, 1956; or any other bond notified by the Central Government in this behalf" shall be substituted with effect from the 1st day of April, 2018.

28.

Amendment of section 55.

- In section 55 of the Income-tax Act, with effect from the 1st day of April, 2018,-

(A)

in sub-section (1), in clause (b), in sub-clause (2), in item (i), for the figures, letters and words "1st day of April, 1981", the figures, letters and words "1st day of April, 2001" shall be substituted;

(B)

in sub-section (2), in clause (b), for the figures, letters and words "1st day of April, 1981" wherever they occur, the figures, letters and words "1st day of April, 2001" shall be substituted.

29.

Amendment of section 56.

- In section 56 of the Income-tax Act, in sub-section (2),-

(I)

in clause (vii), after the figures, letters and words "1st day of October, 2009", the words, figures and letters "but before

the 1st day of April, 2017" shall be inserted;

(II)

in clause (viiia), after the figures, letters and words "1st day of June, 2010", the words, figures and letters "but before the 1st day of April, 2017" shall be inserted;

(III)

after clause (ix), the following clause shall be inserted, namely:-

`(x) where any person receives, in any previous year, from any person or persons on or after the 1st day of April, 2017,-

(a)

any sum of money, without consideration, the aggregate value of which exceeds fifty thousand rupees, the whole of the aggregate value of such sum;

(b)

any immovable property,-

(A)

without consideration, the stamp duty value of which exceeds fifty thousand rupees, the stamp duty value of such property;

(B)

for a consideration which is less than the stamp duty value of the property by an amount exceeding fifty thousand rupees, the stamp duty value of such property as exceeds such consideration:

Provided that where the date of agreement fixing the amount of consideration for the transfer of immovable property and the date of registration are not the same, the stamp duty value on the date of agreement may be taken for the purposes of this sub-clause:

Provided further that the provisions of the first proviso shall apply only in a case where the amount of consideration referred to therein, or a part thereof, has been paid by way of an account payee cheque or an account payee bank draft or by use of electronic clearing system through a bank account, on or before the date of agreement for transfer of such immovable property:

Provided also that where the stamp duty value of immovable property is disputed by the assessee on grounds mentioned in sub-section (2) of section 50C, the Assessing Officer may refer the valuation of such property to a Valuation Officer, and the provisions of section 50C and sub-section (15) of section 155 shall, as far as may be, apply in relation to the stamp duty value of such property for the purpose of this sub-clause as they apply for valuation of capital asset under those sections;

(c)

any property, other than immovable property,-

(A)

without consideration, the aggregate fair market value of which exceeds fifty thousand rupees, the whole of the aggregate fair market value of such property;

(B)

for a consideration which is less than the aggregate fair market value of the property by an amount exceeding fifty thousand rupees, the aggregate fair market value of such property as exceeds such consideration:

Provided that this clause shall not apply to any sum of money or any property received-

(I)

from any relative; or

(II)

on the occasion of the marriage of the individual; or

(III)

under a will or by way of inheritance; or

(IV)

in contemplation of death of the payer or donor, as the case may be; or

(V)

from any local authority as defined in the Explanation to clause (20) of section 10; or

(VI)

from any fund or foundation or university or other educational institution or hospital or other medical institution or any

trust or institution referred to in clause (23C) of section 10; or

(VII)

from or by any trust or institution registered under section 12A or section 12AA; or

(VIII)

by any fund or trust or institution or any university or other educational institution or any hospital or other medical institution referred to in sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10; or

(IX)

by way of transaction not regarded as transfer under clause (i) or clause (vi) or clause (via) or clause (viaa) or clause (vib) or clause (vic) or clause (vica) or clause (vicb) or clause (vid) or clause (vii) of section 47; or

(X)

from an individual by a trust created or established solely for the benefit of relative of the individual.

Explanation. - For the purposes of this clause, the expressions "assessable", "fair market value", "jewellery", "property", "relative" and "stamp duty value" shall have the same meanings as respectively assigned to them in the Explanation to clause (vii).'

30.

Amendment of section 58.

- In section 58 of the Income-tax Act, in sub-section (1A), for the word, brackets, figures and letter "sub-clause (iia)", the words, brackets, figures and letters "sub-clauses (ia) and (iia)" shall be substituted with effect from the 1st day of April, 2018.

31.

Amendment of section 71.

- In section 71 of the Income-tax Act, after sub-section (3), the following sub-section shall be inserted with effect from the 1st day of April, 2018, namely:-

`(3A) Notwithstanding anything contained in sub-section (1) or sub-section (2), where in respect of any assessment year, the net result of the computation under the head "Income from house property" is a loss and the assessee has income assessable under any other head of income, the assessee shall not be entitled to set off such loss, to the extent the amount of the loss exceeds two lakh rupees, against income under the other head.'

32.

Substitution of new section for section 79.

- For section 79 of the Income-tax Act, the following section shall be substituted with effect from the 1st day of April, 2018, namely:-

"79. Carry forward and set off of losses in case of certain companies. - Notwithstanding anything contained in this Chapter, where a change in shareholding has taken place in a previous year,-

(a)

in the case of a company not being a company in which the public are substantially interested and other than a company referred to in clause (b), no loss incurred in any year prior to the previous year shall be carried forward and set off against the income of the previous year, unless on the last day of the previous year, the shares of the company carrying not less than fifty-one per cent. of the voting power were beneficially held by persons who beneficially held shares of the company carrying not less than fifty-one per cent. of the voting power on the last day of the year or years in which the loss was incurred;

(b)

in the case of a company, not being a company in which the public are substantially interested but being an eligible start-up as referred to in section 80-IAC, the loss incurred in any year prior to the previous year shall be carried forward and set off against the income of the previous year, if, all the shareholders of such company who held shares carrying voting power on the last day of the year or years in which the loss was incurred,-

(i)

continue to hold those shares on the last day of such previous year; and

(ii)

such loss has been incurred during the period of seven years beginning from the year in which such company is incorporated:

Provided that nothing contained in this section shall apply to a case where a change in the said voting power and shareholding takes place in a previous year consequent upon the death of a shareholder or on account of transfer of shares by way of gift to any relative of the shareholder making such gift:

Provided further that nothing contained in this section shall apply to any change in the shareholding of an Indian company which is a subsidiary of a foreign company as a result of amalgamation or demerger of a foreign company subject to the condition that fifty-one per cent. shareholders of the amalgamating or demerged foreign company continue to be the shareholders of the amalgamated or the resulting foreign company."

33.

Amendment of section 80CCD.

- In section 80CCD of the Income-tax Act, in sub-section (1), in clause (b), for the words "ten per cent.", the words "twenty per cent." shall be substituted with effect from the 1st day of April, 2018.

34.

Amendment of section 80CCG.

- In section 80CCG of the Income-tax Act, after sub-section (4), the following sub-section shall be inserted with effect from the 1st day of April, 2018, namely:-

"(5) Notwithstanding anything contained in sub-sections (1) to (4), no deduction under this section shall be allowed in respect of any assessment year commencing on or after the 1st day of April, 2018:

Provided that an assessee, who has acquired listed equity shares or listed units of an equity oriented fund in accordance with the scheme referred to in sub-section (1) and claimed deduction under this section for any assessment year commencing on or before the 1st day of April, 2017, shall be allowed deduction under this section till the assessment year commencing on the 1st day of April, 2019, if he is otherwise eligible to claim the deduction in accordance with the other provisions of this section."

35.

Amendment of section 80G.

- In section 80G of the Income-tax Act, in sub-section (5D), for the words "ten thousand rupees", the words "two thousand rupees" shall be substituted with effect from the 1st day of April, 2018.

36.

Amendment of section 80-IAC.

- In section 80-IAC of the Income-tax Act [as inserted by section 42 of the Finance Act, 2016], in sub-section (2), for the words "five years", the words "seven years" shall be substituted with effect from the 1st day of April, 2018.

37.

Amendment of section 80-IBA.

- In section 80-IBA of the Income-tax Act [as inserted by section 44 of the Finance Act, 2016], with effect from the 1st day of April, 2018,-

(a)

in sub-section (2),-

(i)

in clause (b), for the words "three years", the words "five years" shall be substituted;

(ii)

in clauses (c) and (f), for the expression "built-up area" wherever they occur, the words "carpet area" shall be substituted;

(iii)

the words "or within the distance, measured aerially, of twenty-five kilometres from the municipal limits of these cities" wherever they occur shall be omitted;

(b)

in sub-section (6), for clause (a), the following clause shall be substituted, namely:-

`(a) "carpet area" shall have the same meaning as assigned to it in clause (k) of section 2 of the Real Estate (Regulation and Development) Act, 2016.'.

38.

Amendment of section 87A.

- In section 87A of the Income-tax Act, with effect from the 1st day of April, 2018,-

(a)

for the words "five hundred thousand rupees", the words "three hundred fifty thousand rupees" shall be substituted;

(b)

for the words "five thousand rupees" [as substituted by section 46 of the Finance Act, 2016], the words "two thousand five hundred rupees" shall be substituted.

39.

Amendment of section 90.

- In section 90 of the Income-tax Act, after Explanation 3, the following Explanation shall be inserted with effect from the 1st day of April, 2018, namely:-

"Explanation 4. - For the removal of doubts, it is hereby declared that where any term used in an agreement entered into under sub-section (1) is defined under the said agreement, the said term shall have the same meaning as assigned to it in the agreement; and where the term is not defined in the said agreement, but defined in the Act, it shall have the same meaning as assigned to it in the Act and explanation, if any, given to it by the Central Government."

40.

Amendment of section 90A.

- In section 90A of the Income-tax Act, after Explanation 3, the following Explanation shall be inserted with effect from the 1st day of April, 2018, namely:-

"Explanation 4. - For the removal of doubts, it is hereby declared that where any term used in an agreement entered into under sub-section (1) is defined under the said agreement, the said term shall have the same meaning as assigned to it in the agreement; and where the term is not defined in the said agreement, but defined in the Act, it shall have the same meaning as assigned to it in the Act and explanation, if any, given to it by the Central Government."

41.

Amendment of section 92BA.

- In section 92BA of the Income-tax Act, clause (i) shall be omitted.

42.

Insertion of new section 92CE.

- After section 92CD of the Income-tax Act, the following section shall be inserted with effect from the 1st day of April, 2018, namely:-

`92CE. Secondary adjustment in certain cases. - (1) Where a primary adjustment to transfer price,-

(i)

has been made suo motu by the assessee in his return of income;

(ii)

made by the Assessing Officer has been accepted by the assessee;

(iii)

is determined by an advance pricing agreement entered into by the assessee under section 92CC;

(iv)

is made as per the safe harbour rules framed under section 92CB; or

(v)

is arising as a result of resolution of an assessment by way of the mutual agreement procedure under an agreement entered into under section 90 or section 90A for avoidance of double taxation, the assessee shall make a secondary adjustment:

Provided that nothing contained in this section shall apply, if,-

(i)

the amount of primary adjustment made in any previous year does not exceed one crore rupees; and

(ii)

the primary adjustment is made in respect of an assessment year commencing on or before the 1st day of April, 2016.

(2)

Where, as a result of primary adjustment to the transfer price, there is an increase in the total income or reduction in the loss, as the case may be, of the assessee, the excess money which is available with its associated enterprise, if not repatriated to India within the time as may be prescribed, shall be deemed to be an advance made by the assessee to such associated enterprise and the interest on such advance, shall be computed in such manner as may be prescribed.

(3)

For the purposes of this section,-

(i)

"associated enterprise" shall have the meaning assigned to it in sub-section (1) and sub-section (2) of section 92A;

(ii)

"arm's length price" shall have the meaning assigned to it in clause (ii) of section 92F;

(iii)

"excess money" means the difference between the arm's length price determined in primary adjustment and the price at which the international transaction has actually been undertaken;

(iv)

"primary adjustment" to a transfer price, means the determination of transfer price in accordance with the arm's length principle resulting in an increase in the total income or reduction in the loss, as the case may be, of the assessee;

(v)

"secondary adjustment" means an adjustment in the books of account of the assessee and its associated enterprise to reflect that the actual allocation of profits between the assessee and its associated enterprise are consistent with the transfer price determined as a result of primary adjustment, thereby removing the imbalance between cash account and actual profit of the assessee.'.

43.

Insertion of new section 94B.

- After section 94A of the Income-tax Act, the following section shall be inserted with effect from the 1st day of April, 2018, namely:-

94B. Limitation on interest deduction in certain cases. - (1) Notwithstanding anything contained in this Act, where an Indian company, or a permanent establishment of a foreign company in India, being the borrower, incurs any expenditure by way of interest or of similar nature exceeding one crore rupees which is deductible in computing income chargeable under the head

"Profits and gains of business or profession" in respect of any debt issued by a nonresident, being an associated enterprise of such borrower, the interest shall not be deductible in computation of income under the said head to the extent that it arises from excess interest, as specified in sub-section (2):

Provided that where the debt is issued by a lender which is not associated but an associated enterprise either provides an implicit or explicit guarantee to such lender or deposits a corresponding and matching amount of funds with the lender, such debt shall be deemed to have been issued by an associated enterprise.

(2)

For the purposes of sub-section (1), the excess interest shall mean an amount of total interest paid or payable in excess of thirty per cent. of earnings before interest, taxes, depreciation and amortisation of the borrower in the previous year or interest paid or payable to associated enterprises for that previous year, whichever is less.

(3)

Nothing contained in sub-section (1) shall apply to an Indian company or a permanent establishment of a foreign company which is engaged in the business of banking or insurance.

(4)

Where for any assessment year, the interest expenditure is not wholly deducted against income under the head "Profits and gains of business or profession", so much of the interest expenditure as has not been so deducted, shall be carried forward to the following assessment year or assessment years, and it shall be allowed as a deduction against the profits and gains, if any, of any business or profession carried on by it and assessable for that assessment year to the extent of maximum allowable interest expenditure in accordance with sub-section (2):

Provided that no interest expenditure shall be carried forward under this sub-section for more than eight assessment years immediately succeeding the assessment year for which the excess interest expenditure was first computed.

(5)

For the purposes of this section, the expressions-

(i)

"associated enterprise" shall have the meaning assigned to it in sub-section (1) and sub-section (2) of section 92A;

(ii)

"debt" means any loan, financial instrument, finance lease, financial derivative, or any arrangement that gives rise to interest, discounts or other finance charges that are deductible in the computation of income chargeable under the head "Profits and gains of business or profession";

(iii)

"permanent establishment" includes a fixed place of business through which the business of the enterprise is wholly or partly carried on.'.

44.

Amendment of section 115BBDA.

- In section 115BBDA of the Income-tax Act [as inserted by section 52 of the Finance Act, 2016], with effect from the 1st day of April, 2018,-

(i)

in sub-section (1), for the words "an assessee, being an individual, a Hindu Undivided Family or a firm", the words "a specified assessee" shall be substituted;

(ii)

for sub-section (3), the following Explanation shall be substituted, namely:-

`Explanation. - For the purposes of this section,-

(a)

"dividend" shall have the meaning assigned to it in clause (22) of section 2 but shall not include sub-clause (e) thereof;

(b)

"specified assessee" means a person other than,-

(i)

a domestic company; or

(ii)

a fund or institution or trust or any university or other educational institution or any hospital or other medical institution referred to in sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10; or

(iii)

a trust or institution registered under section 12A or section 12AA.'.

45.

Insertion of new section 115 BBG.

- After section 115BBF of the Income-tax Act [as inserted by section 54 of the Finance Act, 2016], the following section shall be inserted with effect from the 1st day of April, 2018, namely:-

`115 BBG. Tax on income from transfer of carbon credits. - (1) Where the total income of an assessee includes any income by way of transfer of carbon credits, the income-tax payable shall be the aggregate of-

(a)

the amount of income-tax calculated on the income by way of transfer of carbon credits, at the rate of ten per cent.; and

(b)

the amount of income-tax with which the assessee would have been chargeable had his total income been reduced by the amount of income referred to in clause (a).

(2)

Notwithstanding anything contained in this Act, no deduction in respect of any expenditure or allowance shall be allowed to the assessee under any provision of this Act in computing his income referred to in clause (a) of sub-section (1).

Explanation. - For the purposes of this section, "carbon credit" in respect of one unit shall mean reduction of one tonne of carbon dioxide emissions or emissions of its equivalent gases which is validated by the United Nations Framework on Climate Change and which can be traded in market at its prevailing market price.'.

46.

Amendment of section 115JAA.

- In section 115JAA of the Income-tax Act, with effect from the 1st day of April, 2018,-

(a)

in sub-section (2A), after the proviso, the following proviso shall be inserted, namely:-

"Provided further that where the amount of tax credit in respect of any income-tax paid in any country or specified territory outside India, under section 90 or section 90A or section 91, allowed against the tax payable under the

provisions of sub-section (1) of section 115JB exceeds the amount of such tax credit admissible against the tax payable by the assessee on its income in accordance with the other provisions of this Act, then, while computing the amount of credit under this sub-section, such excess amount shall be ignored.";

(b)

in sub-section (3A), for the words "tenth assessment year", the words "fifteenth assessment year" shall be substituted.

47.

Amendment of section 115JB.

- In section 115JB of the Income-tax Act,-

(i)

in sub-section (2),-

(a)

for the words "profit and loss account" wherever they occur, the words "statement of profit and loss" shall be substituted;

(b)

for the words and figures "the Companies Act, 1956" wherever they occur, the words and figures "the Companies Act, 2013" shall be substituted;

(c)

in clause (a), for the words and figures "Part II of Schedule VI", the word and figures "Schedule III" shall be substituted;

(d)

in clause (b), for the words, brackets and figures "proviso to sub-section (2) of section 211", the words, brackets and figures "second proviso to sub-section (1) of section 129" shall be substituted;

(e)

in the first proviso, for the word and figures "section 210", the word and figures "section 129" shall be substituted;

(ii)

after sub-section (2), the following sub-sections shall be inserted, namely:-

“(2A) For a company whose financial statements are drawn up in compliance to the Indian Accounting Standards specified in Annexure to the Companies (Indian Accounting Standards) Rules, 2015, the book profit as computed in accordance with Explanation 1 to sub-section (2) shall be further-

(a)

increased by all amounts credited to other comprehensive income in the statement of profit and loss under the head "Items that will not be re-classified to profit or loss";

(b)

decreased by all amounts debited to other comprehensive income in the statement of profit and loss under the head "Items that will not be re-classified to profit or loss";

(c)

increased by amounts or aggregate of the amounts debited to the statement of profit and loss on distribution of non-cash assets to shareholders in a demerger in accordance with Appendix A of the Indian Accounting Standards 10;

(d)

decreased by all amounts or aggregate of the amounts credited to the statement of profit and loss on distribution of non-cash assets to shareholders in a demerger in accordance with Appendix A of the Indian Accounting Standards 10:

Provided that nothing contained in clause (a) or clause (b) shall apply to the amount credited or debited to other comprehensive income under the head "Items that will not be re-classified to profit or loss" in respect of-

(i)

revaluation surplus for assets in accordance with the Indian Accounting Standards 16 and Indian Accounting Standards 38; or

(ii)

gains or losses from investments in equity instruments designated at fair value through other comprehensive income in accordance with the Indian Accounting Standards 109:

Provided further that the book profit of the previous year in which the asset or investment referred to in the first proviso is retired, disposed, realised or otherwise transferred shall be increased or decreased, as the case may be, by the amount or the aggregate of the amounts referred to in the first proviso for the previous year or any of the preceding previous years and relatable to such asset or investment.

(2B)

In the case of a resulting company, where the property and the liabilities of the undertaking or undertakings being received by it are recorded at values different from values appearing in the books of account of the demerged company immediately before the demerger, any change in such value shall be ignored for the purpose of computation of book profit of the resulting company under this section.

(2C)

For a company referred to in sub-section (2A), the book profit of the year of convergence and each of the following four previous years, shall be further increased or decreased, as the case may be, by one-fifth of the transition amount:

Provided that the book profit of the previous year in which the asset or investment referred to in sub-clauses (B) to (E) of clause (iii) of the

Explanation is retired, disposed, realised or otherwise transferred, shall be increased or decreased, as the case may be, by the amount or the aggregate of the amounts referred to in the said sub-clauses relatable to such asset or investment:

Provided further that the book profit of the previous year in which the foreign operation referred to in sub-clause (F) of clause (iii) of the Explanation is disposed or otherwise transferred, shall be increased or decreased, as the case may be, by the amount or the aggregate of the amounts referred to in the said sub-clauses relatable to such foreign operations.

Explanation. - For the purposes of this sub-section, the expression-

(i)

"year of convergence" means the previous year within which the convergence date falls;

(ii)

"convergence date" means the first day of the first Indian Accounting Standards reporting period as defined in the Indian Accounting Standards 101;

(iii)

"transition amount" means the amount or the aggregate of the amounts adjusted in the other equity (excluding capital reserve and securities premium reserve) on the convergence date but not including the following:-

(A)

amount or aggregate of the amounts adjusted in the other comprehensive income on the convergence date which shall be subsequently re-classified to the profit or loss;

(B)

revaluation surplus for assets in accordance with the Indian Accounting Standards 16 and Indian Accounting Standards 38 adjusted on the convergence date;

(C)

gains or losses from investments in equity instruments designated at fair value through other comprehensive income in accordance with the Indian Accounting Standards 109 adjusted on the convergence date;

(D)

adjustments relating to items of property, plant and equipment and intangible assets recorded at fair value as deemed cost in accordance with paragraphs D5 and D7 of the Indian Accounting Standards 101 on the convergence date;

(E)

adjustments relating to investments in subsidiaries, joint ventures and associates recorded at fair value as deemed cost in accordance with paragraph D15 of the Indian Accounting Standards 101 on the convergence date; and

(F)

adjustments relating to cumulative translation differences of a foreign operation in accordance with paragraph D13 of the Indian Accounting Standards 101 on the convergence date.';

(iii)

in Explanation 1, -

(a)

for the words "net profit", the word "profit" shall be substituted;

(b)

for the words "profit and loss account" wherever they occur, the words "statement of profit and loss" shall be substituted;

(c)

in clause (k), for the words "profit or loss account", the words "statement of profit and loss" shall be substituted;

(iv)

in Explanation 3,-

(a)

for the words, brackets and figures "proviso to sub-section (2) of section 211 of the Companies Act, 1956", the words, brackets and figures "second proviso to sub-section (1) of section 129 of the Companies Act, 2013" shall be substituted;

(b)

for the words "profit and loss account", the words "statement of profit and loss" shall be substituted;

(c)

for the words and figures "Part II and Part III of Schedule VI to the Companies Act, 1956", the words and figures "Schedule III to the Companies Act, 2013" shall be substituted.

48.

Amendment of section 115JD.

- In section 115JD of the Income-tax Act, with effect from the 1st day of April, 2018,-

(a)

in sub-section (2), the following proviso shall be inserted, namely:-

"Provided that where the amount of tax credit in respect of any incometax paid in any country or specified territory outside India under section 90 or section 90A or section 91, allowed against the alternate minimum tax payable, exceeds the amount of the tax credit admissible against the regular incometax payable by the assessee, then, while computing the amount of credit under this sub-section, such excess amount shall be ignored.";

(b)

in sub-section (4), for the words "tenth assessment year", the words "fifteenth assessment year" shall be substituted.

49.

Amendment of section 119.

- In section 119 of the Income-tax Act, in sub-section (2), in clause (a), after the figures "271", the figures and letters ",271C, 271CA" shall be inserted.

50.

Amendment of section 132.

- In section 132 of the Income-tax Act,-

(i)

in sub-section (1), after the fourth proviso, the following Explanation shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 1962, namely:-

"Explanation. - For the removal of doubts, it is hereby declared that the reason to believe, as recorded by the income-tax authority under this sub-section, shall not be disclosed to any person or any authority or the Appellate Tribunal.";

(ii)

in sub-section (1A), the following Explanation shall be inserted and shall be deemed to have been inserted with effect from the 1st day of October, 1975, namely:-

"Explanation. - For the removal of doubts, it is hereby declared that the reason to suspect, as recorded by the income-tax authority under this sub-section, shall not be disclosed to any person or any authority or the Appellate Tribunal.";

(iii)

after sub-section (9A), the following sub-sections shall be inserted, namely:-

"(9B) Where, during the course of the search or seizure or within a period of sixty days from the date on which the last of the authorisations for search was executed, the authorised officer, for reasons to be recorded in writing, is satisfied that for the purpose of protecting the interest of revenue, it is necessary so to do, he may with the previous approval of the Principal Director General or Director General or the Principal Director or Director, by order in writing, attach provisionally any property belonging to the assessee, and for the said purposes, the provisions of the Second Schedule shall, mutatis mutandis, apply.

(9C)

Every provisional attachment made under sub-section (9B) shall cease to have effect after the expiry of a period of six months from the date of the order referred to in sub-section (9B).

(9D)

The authorised officer may, during the course of the search or seizure or within a period of sixty days from the date on

which the last of the authorisations for search was executed, make a reference to a Valuation Officer referred to in section 142A, who shall estimate the fair market value of the property in the manner provided under that section and submit a report of the estimate to the said officer within a period of sixty days from the date of receipt of such reference.";

(iv)

for Explanation 1, the following Explanation shall be substituted, namely:-

`Explanation 1. - For the purposes of sub-sections (9A), (9B) and (9D), with respect to "execution of an authorisation for search", the provisions of sub-section (2) of section 153B shall apply.'.

51.

Amendment of section 132A.

- In section 132A of the Income-tax Act, in sub-section (1), the following Explanation shall be inserted and shall be deemed to have been inserted with effect from the 1st day of October, 1975, namely:-

"Explanation. - For the removal of doubts, it is hereby declared that the reason to believe, as recorded by the income-tax authority under this sub-section, shall not be disclosed to any person or any authority or the Appellate Tribunal."

52.

Amendment of section 133.

- In section 133 of the Income-tax Act,-

(i)

in the first proviso, for the words "and the Principal Commissioner or Commissioner", the words "or the Principal Commissioner or Commissioner or the Joint Director or Deputy Director or Assistant Director" shall be substituted;

(ii)

in the second proviso, after the words "Director or Principal Commissioner or Commissioner", the words ", other than the Joint Director or Deputy Director or Assistant Director," shall be inserted.

53.

Amendment of section 133A.

- In section 133A of the Income-tax Act, in sub-section (1),-

(i)

in the long line, for the portion beginning with "at which a business or profession" and ending with "such business or profession-", the following shall be substituted, namely:-

"at which a business or profession or an activity for charitable purpose is carried on, whether such place be the principal place or not of such business or profession or of such activity for charitable purpose, and require any proprietor, trustee, employee or any other person who may at that time and place be attending in any manner to, or helping in, the carrying on of such business or profession or such activity for charitable purpose-";

(ii)

in the Explanation, after the words "business or profession" wherever they occur, the words "or activity for charitable purpose" shall be inserted.

54.

Amendment of section 133C.

- In section 133C of the Income-tax Act, after sub-section (2) and before the Explanation, the following sub-section shall be inserted, namely:-

"(3) The Board may make a scheme for centralised issuance of notice and for processing of information or documents and making available the outcome of the processing to the Assessing Officer."

55.

Amendment of section 139.

- In section 139 of the Income-tax Act, with effect from the 1st day of April, 2018,-

(i)

in sub-section (4C),-

(I)

after clause (c), the following clause shall be inserted, namely:-

"(ca) person referred to in clause (23AAA) of section 10;"

(II)

after clause (eb), the following clauses shall be inserted, namely:-

"(eba) Investor Protection Fund referred to in clause (23EC) or clause (23ED) of section 10;

(ebb)

Core Settlement Guarantee Fund referred to in clause (23EE) of section 10;";

(III)

after clause (f), the following clause shall be inserted, namely:-

"(fa) Board or Authority referred to in clause (29A) of section 10;";

(IV)

in the long line occurring after clause (h), after the words "association or institution,", the words "person or" shall be inserted;

(ii)

in sub-section (5) [as substituted by section 67 of the Finance Act, 2016], the words "the expiry of one year from" shall be omitted.

56.

Insertion of new section 139AA.

- After section 139A of the Income-tax Act, the following section shall be inserted, namely:-

`139AA. Quoting of Aadhaar number. - (1) Every person who is eligible to obtain Aadhaar number shall, on or after the 1st day of July, 2017, quote Aadhaar number-

(i)

in the application form for allotment of permanent account number;

(ii)

in the return of income:

Provided that where the person does not possess the Aadhaar number, the Enrolment ID of Aadhaar application form issued to him at the time of enrolment shall be quoted in the application for permanent account number or, as the case may be, in the return of income furnished by him.

(2)

Every person who has been allotted permanent account number as on the 1st day of July, 2017, and who is eligible to obtain Aadhaar number, shall intimate his Aadhaar number to such authority in such form and manner as may be prescribed, on or before a date to be notified by the Central Government in the Official Gazette:

Provided that in case of failure to intimate the Aadhaar number, the permanent account number allotted to the person shall be deemed to be invalid and the other provisions of this Act shall apply, as if the person had not applied for allotment of permanent account number.

(3)

The provisions of this section shall not apply to such person or class or classes of persons or any State or part of any State, as may be notified by the Central Government in this behalf, in the Official Gazette.

Explanation. - For the purposes of this section, the expressions-

(i)

"Aadhaar number", "Enrolment" and "resident" shall have the same meanings respectively assigned to them in clauses (a), (m) and (v) of section 2 of the Aadhaar (Targeted Delivery of Financial and other Subsidies, Benefits and Services) Act, 2016;

(ii)

"Enrolment ID" means a 28 digit Enrolment Identification Number issued to a resident at the time of enrolment.'.

57.

Amendment of section 140A.

- In section 140A of the Income-tax Act, with effect from the 1st day of April, 2018,-

(i)

in sub-section (1),-

(a)

in the long line,-

(A)

after the words "together with interest", the words "and fee" shall be inserted;

(B)

for the words "and interest", the words ", interest and fee" shall be substituted;

(b)

in the Explanation, for the words "and interest as aforesaid, the amount so paid shall first be adjusted towards", the words ", interest and fee as aforesaid, the amount so paid shall first be adjusted towards the fee payable and thereafter towards" shall be substituted;

(ii)

in sub-section (3), for the words "or interest or both" at both the places where they occur, the words "interest or fee" shall be substituted.

58.

Amendment of section 143.

- In section 143 of the Income-tax Act,-

(a)

in sub-section (1), with effect from the 1st day of April, 2018,-

(i)

in clause (b), for the words "and interest", the words ", interest and fee" shall be substituted;

(A)

for the words "and interest", the words ", interest and fee" shall be substituted;

(B)

for the words "or interest", the words ", interest or fee" shall be substituted;

(iii)

in the first proviso, for the words "or interest", the words ", interest or fee" shall be substituted;

(ii)

in clause (c),-

(b)

for sub-section (1D) [as substituted by section 68 of the Finance Act, 2016], the following shall be substituted, namely:-

"(1D) Notwithstanding anything contained in sub-section (1), the processing of a return shall not be necessary, where a notice has been issued to the assessee under sub-section (2):

Provided that the provisions of this sub-section shall not apply to any return furnished for the assessment year commencing on or after the 1st day of April, 2017."

(c)

in sub-section (3), for the portion beginning with the words "On the day specified in the notice" and ending with the words, brackets and letters "issued under clause (ii) of ", the words "On the day specified in the notice issued under" shall be substituted and shall be deemed to have been substituted with effect from the 1st day of June, 2016.

59.

Amendment of section 153.

- In section 153 of the Income-tax Act,-

(i)

in sub-section (1), the following provisos shall be inserted, namely:-

`Provided that in respect of an order of assessment relating to the assessment year commencing on the 1st day of April, 2018, the provisions of this sub-section shall have effect, as if for the words "twenty-one months", the words "eighteen months" had been substituted:

Provided further that in respect of an order of assessment relating to the assessment year commencing on or after the 1st day of April, 2019, the provisions of this sub-section shall have effect, as if for the words "twentyone months", the words "twelve months" had been substituted.;

(ii)

in sub-section (2), the following proviso shall be inserted, namely:-

`Provided that where the notice under section 148 is served on or after the 1st day of April, 2019, the provisions of this sub-section shall have effect, as if for the words "nine months", the words "twelve months" had been substituted.;

(iii)

in sub-section (3), the following proviso shall be inserted, namely:-

`Provided that where the order under section 254 is received by the Principal Chief Commissioner or Chief Commissioner or Principal Commissioner or Commissioner or, as the case may be, the order under section 263 or section 264 is passed by the Principal Commissioner or Commissioner on or after the 1st day of April, 2019, the provisions of this sub-section shall have effect, as if for the words "nine months", the words "twelve months" had been substituted.';

(iv)

in sub-section (5), after the proviso, the following proviso shall be inserted and shall be deemed to have been inserted with effect from the 1st day of June, 2016, namely:-

"Provided further that where an order under section 250 or section 254 or section 260 or section 262 or section 263 or section 264 requires verification of any issue by way of submission of any document by the assessee or any other person or where an opportunity of being heard is to be provided to the assessee, the order giving effect to the said order under section 250 or section 254 or section 260 or section 262 or section 263 or section 264 shall be made within the time specified in sub-section (3).";

(v)

in sub-section (9), the following proviso shall be inserted and shall be deemed to have been inserted with effect from the 1st day of June, 2016, namely:-

"Provided that where a notice under sub-section (1) of section 142 or sub-section (2) of section 143 or section 148 has been issued prior to the 1st day of June, 2016 and the assessment or reassessment has not been completed by such date due to exclusion of time referred to in Explanation 1, such assessment or reassessment shall be completed in accordance with the provisions of this section as it stood immediately before its substitution by the Finance Act, 2016.";

(vi)

in Explanation 1, in the third proviso, the figures and letter "153B," shall be omitted.

60.

Amendment of section 153A.

- In section 153A of the Income-tax Act, in sub-section (1),-

(i)

in clause (a), first proviso and the second proviso, after the words "six assessment years" wherever they occur, the words "and for the relevant assessment year or years" shall be inserted;

(ii)

in clause (b), after the words "requisition is made", the words "and of the relevant assessment year or years" shall be inserted;

(iii)

in the third proviso, after the words "requisition is made", the words "and for the relevant assessment year or years" shall be inserted;

(iv)

after the third proviso, the following shall be inserted, namely:-

`Provided also that no notice for assessment or reassessment shall be issued by the Assessing Officer for the relevant assessment year or years unless-

(a)

the Assessing Officer has in his possession books of account or other documents or evidence which reveal that the income, represented in the form of asset, which has escaped assessment amounts to or is likely to amount to fifty lakh rupees or more in the relevant assessment year or in aggregate in the relevant assessment years;

(b)

the income referred to in clause (a) or part thereof has escaped assessment for such year or years; and

(c)

the search under section 132 is initiated or requisition under section 132A is made on or after the 1st day of April, 2017.

Explanation 1. - For the purposes of this sub-section, the expression "relevant assessment year" shall mean an assessment year preceding the assessment year relevant to the previous year in which search is conducted or requisition is made which falls beyond six assessment years but not later than ten assessment years from the end of the assessment year relevant to the previous year in which search is conducted or requisition is made.

Explanation 2. - For the purposes of the fourth proviso, "asset" shall include immovable property being land or building

or both, shares and securities, loans and advances, deposits in bank account.'

61.

Amendment of section 153B.

- In section 153B of the Income-tax Act,-

(a)

in sub-section (1),-

(i)

in clause (a), after the words "six assessment years", the words "and for the relevant assessment year or years" shall be inserted;

(ii)

for the second and third provisos, the following provisos shall be substituted, namely:-

`Provided further that in the case where the last of the authorisations for search under section 132 or for requisition under section 132A was executed during the financial year commencing on the 1st day of April, 2018,-

(i)

the provisions of clause (a) or clause (b) of this sub-section shall have effect, as if for the words "twenty-one months", the words "eighteen months" had been substituted;

(ii)

the period of limitation for making the assessment or reassessment in case of other person referred to in section 153C, shall be the period of eighteen months from the end of the financial year in which the last of the authorisations for search under section 132 or for requisition under section 132A was executed or twelve months from the end of the financial year in which books of account or documents or assets seized or requisitioned are handed over under section 153C to the Assessing Officer having jurisdiction over such other person, whichever is later:

Provided also that in the case where the last of the authorisations for search under section 132 or for requisition under section 132A was executed during the financial year commencing on or after the 1st day of April, 2019,-

(i)

the provisions of clause (a) or clause (b) of this sub-section shall have effect, as if for the words "twenty-one months", the words "twelve months" had been substituted;

(ii)

the period of limitation for making the assessment or reassessment in case of other person referred to in section 153C, shall be the period of twelve months from the end of the financial year in which the last of the authorisations for search under section 132 or for requisition under section 132A was executed or twelve months from the end of the financial year in which books of account or documents or assets seized or requisitioned are handed over under section 153C to the Assessing Officer having jurisdiction over such other person, whichever is later:

Provided also that in case where the last of the authorisations for search under section 132 or for requisition under section 132A was executed and during the course of the proceedings for the assessment or reassessment of total income, a reference under sub-section (1) of section 92CA is made, the period available for making an order of assessment or reassessment shall be extended by twelve months:

Provided also that in case where during the course of the proceedings for the assessment or reassessment of total income in case of other person referred to in section 153C, a reference under sub-section (1) of section 92CA is made, the period available for making an order of assessment or reassessment in case of such other person shall be extended by twelve months.;

(b)

in sub-section (3), the following proviso shall be inserted and shall be deemed to have been inserted with effect from the 1st day of June, 2016, namely:-

"Provided that where a notice under section 153A or section 153C has been issued prior to the 1st day of June, 2016 and the assessment has not been completed by such date due to exclusion of time referred to in the Explanation, such assessment shall be completed in accordance with the provisions of this section as it stood immediately before its substitution by the Finance Act, 2016.";

(c)

in the Explanation, after the second proviso, the following proviso shall be inserted, namely:-

"Provided also that where a proceeding before the Settlement Commission abates under section 245HA, the period of

limitation available under this section to the Assessing Officer for making an order of assessment or reassessment, as the case may be, shall, after the exclusion of the period under sub-section (4) of section 245HA, be not less than one year; and where such period of limitation is less than one year, it shall be deemed to have been extended to one year."

62.

Amendment of section 153C.

- In section 153C of the Income-tax Act, in sub-section (1),-

(a)

in the long line, after the words "total income of such other person", the words "for six assessment years immediately preceding the assessment year relevant to the previous year in which search is conducted or requisition is made and" shall be inserted;

(b)

in the second proviso, after the words "requisition is made", the words, brackets, figures and letter "and for the relevant assessment year or years as referred to in sub-section (1) of section 153A" shall be inserted.

63.

Amendment of section 155.

- In section 155 of the Income-tax Act, after sub-section (14), the following sub-section shall be inserted with effect from the 1st day of April, 2018, namely:-

"(14A) Where in the assessment for any previous year or in any intimation or deemed intimation under sub-section (1) of section 143 for any previous year, credit for income-tax paid in any country outside India or a specified territory outside India referred to in section 90, section 90A or section 91 has not been given on the ground that the payment of such tax was under dispute, and if subsequently such dispute is settled; and the assessee, within six months from the end of the month in which the dispute is settled, furnishes to the Assessing Officer evidence of settlement of dispute and evidence of payment of such tax along with an undertaking that no credit in respect of such amount has directly or indirectly been claimed or shall be claimed for any other assessment year, the Assessing Officer shall amend the order of assessment or any intimation or deemed intimation under sub-section (1) of section 143, as the case may be, and the provisions of section 154 shall, so far as may be, apply thereto:

Provided that the credit of tax which was under dispute shall be allowed for the year in which such income is offered to tax or assessed to tax in India."

64.

Insertion of new section 194-IB.

- After section 194-IA of the Income-tax Act, the following section shall be inserted with effect from the 1st day of June, 2017, namely:-

`194-IB. Payment of rent by certain individuals or Hindu undivided family. - (1) Any person, being an individual or a Hindu undivided family (other than those referred to in the second proviso to section 194-IB, responsible for paying to a resident any income by way of rent exceeding fifty thousand rupees for a month or part of a month during the previous year, shall deduct an amount equal to five per cent. of such income as income-tax thereon.

(2)

The income-tax referred to in sub-section (1) shall be deducted on such income at the time of credit of rent, for the last month of the previous year or the last month of tenancy, if the property is vacated during the year, as the case may be, to the account of the payee or at the time of payment thereof in cash or by issue of a cheque or draft or by any other mode, whichever is earlier.

(3)

The provisions of section 203A shall not apply to a person required to deduct tax in accordance with the provisions of this section.

(4)

In a case where the tax is required to be deducted as per the provisions of section 206AA, such deduction shall not exceed the amount of rent payable for the last month of the previous year or the last month of the tenancy, as the case may be.

Explanation. - For the purposes of this section, "rent" means any payment, by whatever name called, under any lease, sub-lease, tenancy or any other agreement or arrangement for the use of any land or building or both.'

65.

Insertion of new section 194-IC.

- After section 194-IB of the Income-tax Act as so inserted, the following section shall be inserted, namely:-

"194-IC. Payment under specified agreement. - Notwithstanding anything contained in section 194-IA, any person responsible for paying to a resident any sum by way of consideration, not being consideration in kind, under the agreement referred to in sub-section (5A) of section 45, shall at the time of credit of such sum to the account of the payee or at the time of payment thereof in cash or by issue of a cheque or draft or by any other mode, whichever is earlier, deduct an amount equal to ten per cent. of such sum as income-tax thereon."

66.

Amendment of section 194J.

- In section 194J of the Income-tax Act, after the third proviso and before the Explanation, the following proviso shall be inserted with effect from the 1st day of June, 2017, namely:-

`Provided also that the provisions of this section shall have effect, as if for the words "ten per cent.", the words "two per cent." had been substituted in the case of a payee, engaged only in the business of operation of call centre.'

67.

Amendment of section 194LA.

- In section 194LA of the Income-tax Act, after the proviso and before the Explanation, the following proviso shall be inserted, namely:-

"Provided further that no deduction shall be made under this section where such payment is made in respect of any award or agreement which has been exempted from levy of income-tax under section 96 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013."

68.

Amendment of section 194LC.

- In section 194LC of the Income-tax Act, in sub-section (2),-

(a)

in clause (i), with effect from the 1st day of April, 2018,-

(A)

in sub-clauses (a) and (c), for the figures, letters and words "1st day of July, 2017", the figures, letters and words "1st day of July, 2020" shall be substituted;

(B)

in the long line, for the word "and", the word "or" shall be substituted;

(b)

after clause (i), the following clause shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 2016, namely:-

"(ia) in respect of monies borrowed by it from a source outside India by way of issue of rupee denominated bond before the 1st day of July, 2020, and".

69.

Amendment of section 194LD.

- In section 194LD of the Income-tax Act, in sub-section (2), for the figures, letters and words "1st day of July, 2017", the figures, letters and words "1st day of July, 2020" shall be substituted with effect from the 1st day of April, 2018.

70.

Amendment of section 197A.

- In section 197A of the Income-tax Act, with effect from the 1st day of June, 2017,-

(a)

in sub-section (1A), after the word, figures and letter "section 194A" at both the places where they occur, the words, figures and letter "or section 194D" shall be inserted;

(b)

in sub-section (1C), after the word, figures and letter "section 194A" at both the places where they occur, the words, figures and letter "or section 194D" shall be inserted.

71.

Amendment of section 204.

- In section 204 of the Income-tax Act, after clause (ia), the following clause shall be inserted, namely:-

"(iib) in the case of furnishing of information relating to payment to a nonresident, not being a company, or to a foreign company, of any sum, whether or not chargeable under the provisions of this Act, the payer himself, or, if the payer is a company, the company itself including the principal officer thereof;".

72.

Amendment of section 206C.

- In section 206C of the Income-tax Act,-

(a)

sub-section (1D) shall be omitted;

(b)

sub-section (1E) shall be omitted;

(c)

in sub-sections (2), (3), (3A) and sub-section (9), the words, brackets, figure and letter "or sub-section (1D)" wherever they occur, shall be omitted;

(d)

in sub-section (6A), in the first proviso, the words, brackets, figure and letter ", other than a person referred to in sub-section (1D)," shall be omitted;

(e)

in sub-section (7), in the proviso, the words, brackets, figure and letter ", other than a person referred to in sub-section (1D)," shall be omitted;

(f)

in the Explanation occurring after sub-section (11),-

(A)

in clause (aa),-

(I)

sub-clause (ii) shall be omitted;

(II)

after sub-clause (ii), the following sub-clause shall be inserted, namely:-

"(iii) sub-section (1F) means a person who obtains in any sale, goods of the nature specified in the said sub-section, but does not include,-

(A)

the Central Government, a State Government and an embassy, a High Commission, legation, commission, consulate and the trade representation of a foreign State; or

(B)

a local authority as defined in Explanation to clause (20) of section 10; or

(C)

a public sector company which is engaged in the business of carrying passengers.";

(B)

clause (ab) shall be omitted.

(C)

in clause (c), for the words, brackets, figures and letters "or sub section (1D) are sold or services referred to in sub-section (1D) are provided", the words "are sold" shall be substituted.

73.

Insertion of new section 206CC.

- After section 206CB of the Income-tax Act, the following section shall be inserted, namely:-

`206CC. Requirement to furnish Permanent Account Number by collectee. - (1) Notwithstanding anything contained in any other provisions of this Act, any person paying any sum or amount, on which tax is collectible at source under Chapter XVII-BB (herein referred to as collectee) shall furnish his Permanent Account Number to the person responsible for collecting such tax (herein referred to as collector), failing which tax shall be collected at the higher of the following rates, namely:-

(i)

at twice the rate specified in the relevant provision of this Act; or

(ii)
at the rate of five per cent.

(2)
No declaration under sub-section (1A) of section 206C shall be valid unless the person furnishes his Permanent Account Number in such declaration.

(3)
In case any declaration becomes invalid under sub-section (2), the collector shall collect the tax at source in accordance with the provisions of sub-section (1).

(4)
No certificate under sub-section (9) of section 206C shall be granted unless the application made under that section contains the Permanent Account Number of the applicant.

(5)
The collectee shall furnish his Permanent Account Number to the collector and both shall indicate the same in all the correspondence, bills, vouchers and other documents which are sent to each other.

(6)
Where the Permanent Account Number provided to the collector is invalid or does not belong to the collectee, it shall be deemed that the collectee has not furnished his Permanent Account Number to the collector and the provisions of sub-section (1) shall apply accordingly.

(7)
The provisions of this section shall not apply to a non-resident who does not have permanent establishment in India.
Explanation.-For the purposes of this sub-section, the expression "permanent establishment" includes a fixed place of business through which the business of the enterprise is wholly or partly carried on.'

74.
Amendment of section 211.

- In section 211 of the Income-tax Act, in sub-section (1), in clause (b), for the words, figures and letters "an eligible assessee in respect of an eligible business referred to in section 44AD", the words, brackets, figures and letters "an assessee who declares profits and gains in accordance with the provisions of sub-section (1) of section 44AD or sub-section (1) of section 44ADA, as the case may be" shall be substituted.

75.
Amendment of section 234C.

- In section 234C of the Income-tax Act, in sub-section (1),-

(i)
in clause (a), for the words, figures and letters "an eligible assessee in respect of the eligible business referred to in section 44AD", the words, brackets and letter "the assessee referred to in clause (b)" shall be substituted;

(ii)
in clause (b), for the words, figures and letters "an eligible assessee in respect of the eligible business referred to in section 44AD", the words, brackets, figures and letters "an assessee who declares profits and gains in accordance with the provisions of sub-section (1) of section 44AD or sub-section (1) of section 44ADA, as the case may be" shall be substituted;

(iii)
in the first proviso,-

(A)
in clause (c), for the words "first time," occurring at the end, the words "first time; or" shall be substituted;

(B)
after clause (c) and before the long line, the following clause shall be inserted, namely:-
"(d) income of the nature referred to in sub-section (1) of section 115BBDA,";

(C)
in the long line, after the words, brackets and letter "or clause (c)", the words, brackets and letter "or clause (d)" shall be inserted.

76.
Insertion of new section 234F.

- After section 234E of the Income-tax Act, the following section shall be inserted with effect from the 1st day of April, 2018, namely:-

"234F. Fee for default in furnishing return of income. - (1) Without prejudice to the provisions of this Act, where a person required to furnish a return of income under section 139, fails to do so within the time prescribed in sub-section (1) of the said section, he shall pay, by way of fee, a sum of,-

(a)

five thousand rupees, if the return is furnished on or before the 31st day of December of the assessment year;

(b)

ten thousand rupees in any other case:

Provided that if the total income of the person does not exceed five lakh rupees, the fee payable under this section shall not exceed one thousand rupees.

(2)

The provisions of this section shall apply in respect of return of income required to be furnished for the assessment year commencing on or after the 1st day of April, 2018."

77.

Insertion of new section 241A.

- After section 241 of the Income-tax Act [as it stood immediately before its omission by section 81 of the Finance Act, 2001], the following section shall be inserted, namely:-

"241A. Withholding of refund in certain cases. - For every assessment year commencing on or after the 1st day of April, 2017, where refund of any amount becomes due to the assessee under the provisions of sub-section (1) of section 143 and the Assessing Officer is of the opinion, having regard to the fact that a notice has been issued under sub-section (2) of section 143 in respect of such return, that the grant of the refund is likely to adversely affect the revenue, he may, for reasons to be recorded in writing and with the previous approval of the Principal Commissioner or Commissioner, as the case may be, withhold the refund up to the date on which the assessment is made."

78.

Amendment of section 244A.

- In section 244A of the Income-tax Act,-

(i)

after sub-section (1A), the following sub-section shall be inserted, namely:-

"(1B) Where refund of any amount becomes due to the deductor in respect of any amount paid to the credit of the Central Government under Chapter XVII-B, such deductor shall be entitled to receive, in addition to the said amount, simple interest thereon calculated at the rate of one-half per cent. for every month or part of a month comprised in the period, from the date on which-

(a)

claim for refund is made in the prescribed form; or

(b)

tax is paid, where refund arises on account of giving effect to an order under section 250 or section 254 or section 260 or section 262,

to the date on which the refund is granted.";

(ii)

in sub-section (2),-

(a)

after the words "to the assessee", the words "or the deductor, as the case may be," shall be inserted;

(b)

after the word, brackets, figure and letter "or (1A)", the word, brackets, figure and letter "or (1B)" shall be inserted.

79.

Amendment of section 245A.

- In section 245A of the Income-tax Act, in clause (b), in the Explanation, in clause (iv), for the words "two years from the end of the relevant assessment year", the words, brackets and figures "the time specified for making assessment under sub-section (1) of section 153" shall be substituted.

80.

Amendment of section 245N.

- In section 245N of the Income-tax Act, for clause (b), the following clause shall be substituted, namely:-

`(b) "applicant" means-

(A)

any person who-

(I)

is a non-resident referred to in sub-clause (i) of clause (a); or

(II)

is a resident referred to in sub-clause (ii) of clause (a); or

(III)

is a resident referred to in sub-clause (iia) of clause (a) falling within any such class or category of persons as the Central Government may, by notification in the Official Gazette, specify; or

(IV)

is a resident falling within any such class or category of persons as the Central Government may, by notification in the Official Gazette, specify in this behalf; or

(V)

is referred to in sub-clause (iv) of clause (a), and makes an application under sub-section (1) of section 245Q;

(B)

an applicant as defined in clause (c) of section 28E of the Customs Act, 1962;

(C)

an applicant as defined in clause (c) of section 23A of the Central Excise Act, 1944;

(D)

an applicant as defined in clause (b) of section 96A of the Finance Act, 1994;'.
81.

Amendment of section 245-O.

- In section 245-O of the Income-tax Act,-

(a)

in sub-section (3),-

(i)

in clause (a), after the words "a Judge of the Supreme Court", the words "or the Chief Justice of a High Court or for at least seven years a Judge of a High Court" shall be inserted;

(ii)

for clause (c), the following clause shall be substituted, namely:-

"(c) a revenue Member-

(i)

from the Indian Revenue Service, who is, or is qualified to be, a Member of the Board; or

(ii)

from the Indian Customs and Central Excise Service, who is, or is qualified to be, a Member of the Central Board of Excise and Customs,

on the date of occurrence of vacancy;"

(iii)

in clause (d), after the words "Government of India", the words "on the date of occurrence of vacancy" shall be inserted;

(b)

after sub-section (6), the following sub-sections shall be inserted, namely: -

"(6A) In the event of the occurrence of any vacancy in the office of the Chairman by reason of his death, resignation or otherwise, the seniormost Vice-chairman shall act as the Chairman until the date on which a new Chairman, appointed in accordance with the provisions of this Act to fill such vacancy, enters upon his office.

(6B)

In case the Chairman is unable to discharge his functions owing to absence, illness or any other cause, the senior-most Vice-chairman shall discharge the functions of the Chairman until the date on which the Chairman resumes his duties."

82.

Amendment of section 245Q.

- In section 245Q of the Income-tax Act, in sub-section (1), after the words "advance ruling under this Chapter", the words, figures and letters "or under Chapter V of the Customs Act, 1962 or under Chapter IIIA of the Central Excise Act, 1944 or under Chapter VA of the Finance Act, 1994" shall be inserted.

83.

Amendment of section 253.

- In section 253 of the Income-tax Act, in sub-section (1), in clause (f), after the words "authority under", the words, brackets and figures "sub-clause (iv) or sub-clause (v) or" shall be inserted.

84.

Insertion of new section 269ST.

- After section 269SS of the Income-tax Act, the following section shall be inserted, namely:-

`269ST. - No person shall receive an amount of two lakh rupees or more-

(a)

in aggregate from a person in a day; or

(b)

in respect of a single transaction; or

(c)

in respect of transactions relating to one event or occasion from a person, otherwise than by an account payee cheque or an account payee bank draft or use of electronic clearing system through a bank account:

Provided that the provisions of this section shall not apply to-

(i)

any receipt by-

(a)

Government;

(b)

any banking company, post office savings bank or co-operative bank;

(ii)

transactions of the nature referred to in section 269SS;

(iii)

such other persons or class of persons or receipts, which the Central Government may, by notification in the Official Gazette, specify.

Explanation. - For the purposes of this section,-

(a)

"banking company" shall have the same meaning as assigned to it in clause (i) of the Explanation to section 269SS;

(b)

"co-operative bank" shall have the same meaning as assigned to it in clause (ii) of the Explanation to section 269SS.'.

85.

Insertion of new section 271DA.

- After section 271D of the Income-tax Act, the following section shall be inserted, namely:-

"271DA. Penalty for failure to comply with provisions of section 269ST. - (1) If a person receives any sum in contravention of the provisions of section 269ST, he shall be liable to pay, by way of penalty, a sum equal to the amount of such receipt:

Provided that no penalty shall be imposable if such person proves that there were good and sufficient reasons for the contravention.

(2)

Any penalty imposable under sub-section (1) shall be imposed by the Joint Commissioner."

86.

Amendment of section 271F.

- In section 271F of the Income-tax Act, the following proviso shall be inserted with effect from the 1st day of April, 2018, namely:-

"Provided that nothing contained in this section shall apply to and in relation to the return of income required to be

furnished for any assessment year commencing on or after the 1st day of April, 2018."

87.

Insertion of new section 271J.

- After section 271-I of the Income-tax Act, the following section shall be inserted, namely:-

271J. Penalty for furnishing incorrect information in reports or certificates. - Without prejudice to the provisions of this Act, where the Assessing Officer or the Commissioner (Appeals), in the course of any proceedings under this Act, finds that an accountant or a merchant banker or a registered valuer has furnished incorrect information in any report or certificate furnished under any provision of this Act or the rules made thereunder, the Assessing Officer or the Commissioner (Appeals) may direct that such accountant or merchant banker or registered valuer, as the case may be, shall pay, by way of penalty, a sum of ten thousand rupees for each such report or certificate.

Explanation. - For the purposes of this section,-

(a)

"accountant" means an accountant referred to in the Explanation below sub-section (2) of section 288;

(b)

"merchant banker" means Category I merchant banker registered with the Securities and Exchange Board of India established under section 3 of the Securities and Exchange Board of India Act, 1992;

(c)

"registered valuer" means a person defined in clause (oaa) of section 2 of the Wealth-tax Act, 1957.'

88.

Amendment of section 273B.

- In section 273B of the Income-tax Act, after the word, figures and letter "section 271-I," the word, figures and letter "section 271J," shall be inserted.

Chapter IV

Indirect Taxes

Customs

89.

Amendment of section 2.

- In the Customs Act, 1962 (hereinafter referred to as the Customs Act), in section 2,-

(a)

after clause (3), the following clause shall be inserted, namely:-

(3A) "beneficial owner" means any person on whose behalf the goods are being imported or exported or who exercises effective control over the goods being imported or exported;;

(b)

in clause (13), for the words "customs airport", the words "customs airport, international courier terminal, foreign post office" shall be substituted;

(c)

in clause (16), the words and figures "in the case of goods imported or to be exported by post, the entry referred to in section 82 or" shall be omitted;

(d)

in clause (20), for the words "any owner", the words "any owner, beneficial owner" shall be substituted;

(e)

after clause (20), the following clause shall be inserted, namely:-

(20A)

"foreign post office" means any post office appointed under clause (e) of sub-section (1) of section 7 to be a foreign post office;;

(f)

in clause (26), for the words "any owner", the words "any owner, beneficial owner" shall be substituted;

(g)

after clause (28), the following clause shall be inserted, namely:-

(28A)

"international courier terminal" means any place appointed under clause (f) of sub-section (1) of section 7 to be an

international courier terminal;";

(h)

after clause (30A), the following clause shall be inserted, namely:-

`(30B) "passenger name record information" means the records prepared by an operator of any aircraft or vessel or vehicle or his authorised agent for each journey booked by or on behalf of any passenger;".

90.

Amendment of section 7.

- In the Customs Act, in section 7, in sub-section (1), after clause (d), the following clauses shall be inserted, namely:-

"(e) the post offices which alone shall be foreign post offices for the clearance of imported goods or export goods or any class of such goods;

(f)

the places which alone shall be international courier terminals for the clearance of imported goods or export goods or any class of such goods."

91.

Amendment of section 17.

- In the Customs Act, in section 17, for sub-section (3), the following sub-section shall be substituted, namely:-

"(3) For verification of self-assessment under sub-section (2), the proper officer may require the importer, exporter or any other person to produce any document or information, whereby the duty leviable on the imported goods or export goods, as the case may be, can be ascertained and thereupon, the importer, exporter or such other person shall produce such document or furnish such information."

92.

Amendment of section 27.

- In the Customs Act, in section 27, in sub-section (2), in the first proviso, after clause (f), the following clause shall be inserted, namely:-

"(g) the duty paid in excess by the importer before an order permitting clearance of goods for home consumption is made where -

(i)

such excess payment of duty is evident from the bill of entry in the case of self-assessed bill of entry; or

(ii)

the duty actually payable is reflected in the reassessed bill of entry in the case of reassessment."

93.

Amendment of section 28E.

- In the Customs Act, in section 28E, for clause (e), the following clause shall be substituted, namely:-

`(e) "Authority" means the Authority for Advance Rulings constituted under section 245-O of the Income-tax Act, 1961;".

94.

Substitution of new section for section 28F.

- In the Customs Act, for section 28F, the following section shall be substituted, namely:-

"28F. Authority for Advance Rulings. - (1) Subject to the provisions of this Act, the Authority for Advance Rulings constituted under section 245-O of the Income-tax Act, 1961 shall be the Authority for giving advance rulings for the purposes of this Act and the said Authority shall exercise the jurisdiction, powers and authority conferred on it by or under this Act:

Provided that the Member from the Indian Revenue Service (Customs and Central Excise), who is qualified to be a Member of the Board, shall be the revenue Member of the Authority for the purposes of this Act.

(2)

On and from the date on which the Finance Bill, 2017 receives the assent of the President, every application and proceeding pending before the erstwhile Authority for Advance Rulings (Central Excise, Customs and Service Tax) shall stand transferred to the Authority from the stage at which such application or proceeding stood as on the date of such assent."

95.

Omission of section 28G.

- In the Customs Act, section 28G shall be omitted.

96.

Amendment of section 28H.

- In the Customs Act, in section 28H, in sub-section (3), for the words "two thousand five hundred rupees", the words "ten thousand rupees" shall be substituted.

97.

Amendment of section 28-I.

- In the Customs Act, in section 28-I, in sub-section (6), for the words "ninety days", the words "six months" shall be substituted.

98.

Insertion of new section 30A.

- In the Customs Act, after section 30, the following section shall be inserted, namely:-

"30A. Passenger and crew arrival manifest and passenger name record information. - (1) The person-in-charge of a conveyance that enters India from any place outside India or any other person as may be specified by the Central Government by notification in the Official Gazette, shall deliver to the proper officer-

(i)

the passenger and crew arrival manifest before arrival in the case of an aircraft or a vessel and upon arrival in the case of a vehicle; and

(ii)

the passenger name record information of arriving passengers, in such form, containing such particulars, in such manner and within such time, as may be prescribed.

(2)

Where the passenger and crew arrival manifest or the passenger name record information or any part thereof is not delivered to the proper officer within the prescribed time and if the proper officer is satisfied that there was no sufficient cause for such delay, the person-in-charge or the other person referred to in sub-section (1) shall be liable to such penalty, not exceeding fifty thousand rupees, as may be prescribed."

99.

Insertion of new section 41A.

- In the Customs Act, after section 41, the following section shall be inserted, namely:-

"41A. Passenger and crew departure manifest and passenger name record information. - (1) The person-in-charge of a conveyance that departs from India to a place outside India or any other person as may be specified by the Central Government by notification in the Official Gazette, shall deliver to the proper officer-

(i)

the passenger and crew departure manifest; and

(ii)

the passenger name record information of departing passengers, in such form, containing such particulars, in such manner and within such time, as may be prescribed.

(2)

Where the passenger and crew departure manifest or the passenger name record information or any part thereof is not delivered to the proper officer within the prescribed time and if the proper officer is satisfied that there was no sufficient cause for such delay, the person-in-charge or the other person referred to in sub-section (1) shall be liable to such penalty, not exceeding fifty thousand rupees, as may be prescribed."

100.

Amendment of section 46.

- In the Customs Act, in section 46, for sub-section (3), the following sub-section shall be substituted, namely:-

"(3) The importer shall present the bill of entry under sub-section (1) before the end of the next day following the day (excluding holidays) on which the aircraft or vessel or vehicle carrying the goods arrives at a customs station at which such goods are to be cleared for home consumption or warehousing:

Provided that a bill of entry may be presented within thirty days of the expected arrival of the aircraft or vessel or vehicle by which the goods have been shipped for importation into India:

Provided further that where the bill of entry is not presented within the time so specified and the proper officer is satisfied that there was no sufficient cause for such delay, the importer shall pay such charges for late presentation of the bill of

entry as may be prescribed."

101.

Amendment of section 47.

- In the Customs Act, in section 47, in sub-section (2), for the portion beginning with the words "Where the importer fails to pay" and ending with the words "in the Official Gazette", the following shall be substituted, namely:-

"The importer shall pay the import duty-

(a)

on the date of presentation of the bill of entry in the case of self-assessment; or

(b)

within one day (excluding holidays) from the date on which the bill of entry is returned to him by the proper officer for payment of duty in the case of assessment, reassessment or provisional assessment; or

(c)

in the case of deferred payment under the proviso to sub-section (1), from such due date as may be specified by rules made in this behalf, and if he fails to pay the duty within the time so specified, he shall pay interest on the duty not paid or short-paid till the date of its payment, at such rate, not less than ten per cent. but not exceeding thirty-six per cent. per annum, as may be fixed by the Central Government, by notification in the Official Gazette."

102.

Substitution of new section for section 49.

- In the Customs Act, for section 49, the following section shall be substituted, namely:-

"49. Storage of imported goods in warehouse pending clearance or removal. - Where,-

(a)

in the case of any imported goods, whether dutiable or not, entered for home consumption, the Assistant Commissioner of Customs or Deputy Commissioner of Customs is satisfied on the application of the importer that the goods cannot be cleared within a reasonable time;

(b)

in the case of any imported dutiable goods, entered for warehousing, the Assistant Commissioner of Customs or Deputy Commissioner of Customs is satisfied on the application of the importer that the goods cannot be removed for deposit in a warehouse within a reasonable time, the goods may pending clearance or removal, as the case may be, be permitted to be stored in a public warehouse for a period not exceeding thirty days:

Provided that the provisions of Chapter IX shall not apply to goods permitted to be stored in a public warehouse under this section:

Provided further that the Principal Commissioner of Customs or Commissioner of Customs may extend the period of storage for a further period not exceeding thirty days at a time."

103.

Amendment of section 69.

- In the Customs Act, in section 69, in sub-section (1), for clause (a), the following clause shall be substituted, namely:-

"(a) a shipping bill or a bill of export or the form as prescribed under section 84 has been presented in respect of such goods;"

104.

Omission of section 82.

- In the Customs Act, section 82 shall be omitted.

105.

Amendment of section 84.

- In the Customs Act, in section 84, for clause (a), the following clause shall be substituted, namely:-

"(a) the form and manner in which an entry may be made in respect of goods imported or to be exported by post;"

106.

Amendment of section 127B.

- In the Customs Act, in section 127B, after sub-section (4), the following sub-section shall be inserted, namely:-

"(5) Any person, other than an applicant referred to in sub-section (1), may also make an application to the Settlement Commission in respect of a show cause notice issued to him in a case relating to the applicant which has been settled or is pending before the Settlement Commission and such notice is pending before an adjudicating authority, in such

manner and subject to such conditions, as may be specified by rules.".

107.

Amendment of section 127C.

- In the Customs Act, in section 127C, after sub-section (5), the following sub-section shall be inserted, namely:-

"(5A) The Settlement Commission may, at any time within three months from the date of passing of the order under sub-section (5), amend such order to rectify any error apparent on the face of record, either suo motu or when such error is brought to its notice by the jurisdictional Principal Commissioner of Customs or Commissioner of Customs or the applicant:

Provided that no amendment which has the effect of enhancing the liability of the applicant shall be made under this sub-section, unless the Settlement Commission has given notice of such intention to the applicant and the jurisdictional Principal Commissioner of Customs or Commissioner of Customs as the case may be, and has given them a reasonable opportunity of being heard.".

108.

Amendment of section 157.

- In the Customs Act, in section 157, in sub-section (2), after clause (aa), the following clause shall be inserted, namely:-

"(ab) the form, the particulars, the manner and the time of delivering the passenger and crew manifest for arrival and departure and passenger name record information and the penalty for delay in delivering such information under sections 30A and 41A;".

Customs Tariff

109.

Amendment of section 9.

- In the Customs Tariff Act, 1975 (hereinafter referred to as the Customs Tariff Act), in section 9, in sub-section (3), for clause (c), the following clause shall be substituted, namely:-

"(c) the subsidy has been conferred on a limited number of persons engaged in the manufacture, production or export of articles;".

110.

Amendment of First Schedule.

- In the Customs Tariff Act, the First Schedule shall-

(a)

be amended in the manner specified in the Second Schedule;

(b)

be also amended in the manner specified in the Third Schedule.

111.

Amendment of Second Schedule.

- In the Customs Tariff Act, the Second Schedule shall be amended in the manner specified in the Fourth Schedule.

Excise

112.

Amendment of section 23A.

- In the Central Excise Act, 1944 (hereinafter referred to as the Central Excise Act), in section 23A, for clause (e), the following clause shall be substituted, namely:-

`(e) "Authority" means the Authority for Advance Rulings as defined in clause (e) of section 28E of the Customs Act, 1962;'.

113.

Omission of section 23B.

- In the Central Excise Act, section 23B shall be omitted.

114.

Amendment of section 23C.

- In the Central Excise Act, in section 23C, in sub-section (3), for the words "two thousand and five hundred rupees", the words "ten thousand rupees" shall be substituted.

115.

Amendment of section 23D.

- In the Central Excise Act, in section 23D, in sub-section (6), for the words "ninety days", the words "six months" shall be substituted.

116.

Insertion of new section 23-I.

- In the Central Excise Act, after section 23H, the following section shall be inserted, namely:-

"23-I. Transitional provision. - On and from the date on which the Finance Bill, 2017 receives the assent of the President, every application and proceeding pending before the erstwhile Authority for Advance Rulings (Central Excise, Customs and Service Tax) shall stand transferred to the Authority from the stage at which such application or proceeding stood as on the date of such assent."

117.

Amendment of section 32E.

- In the Central Excise Act, in section 32E, after sub-section (4), the following sub-section shall be inserted, namely:-

"(5) Any person other than an assessee, may also make an application to the Settlement Commission in respect of a show cause notice issued to him in a case relating to the assessee which has been settled or is pending before the Settlement Commission and such notice is pending before an adjudicating authority, in such manner and subject to such conditions, as may be prescribed."

118.

Amendment of section 32F.

- In the Central Excise Act, in section 32F,-

(i)

in sub-section (1), for words, brackets and figure ``sub-section (1) of " shall be omitted;

(ii)

after sub-section (5), the following sub-section shall be inserted, namely:-

"(5A) The Settlement Commission may, at any time within three months from the date of passing of the order under sub-section (5), amend such order to rectify any error apparent on the face of record, either suo motu or when such error is brought to its notice by the jurisdictional Principal Commissioner of Central Excise or Commissioner of Central Excise or the applicant:

Provided that no amendment which has the effect of enhancing the liability of the applicant shall be made under this sub-section, unless the Settlement Commission has given notice of such intention to the applicant and the jurisdictional Principal Commissioner of Central Excise or Commissioner of Central Excise as the case may be, and has given them a reasonable opportunity of being heard.'.

Central Excise Tariff

119.

Amendment of First Schedule.

- In the Central Excise Tariff Act, 1985 (hereinafter referred to as the Central Excise Tariff Act), the First Schedule shall be amended in the manner specified in the Fifth Schedule.

120.

Retrospective amendment of certain entries in First Schedule.

- In the Central Excise Tariff Act, in the First Schedule, in Chapter 87, in column (4), for the entry "27%" occurring against tariff items 8702 90 21, 8702 90 22, 8702 90 28 and 8702 90 29, the entry "12.5%" shall be substituted and shall be deemed to have been substituted retrospectively with effect from the 1st day of January, 2017.

Chapter V

Service Tax

121.

Amendment of section 65B.

- In the Finance Act, 1994 (hereinafter referred to as the 1994 Act), in section 65B, clause (40) shall be omitted.

122.

Amendment of section 66D.

- In the 1994 Act, in section 66D, clause (f) shall be omitted.

123.

Amendment of section 96A.

- In the 1994 Act, in section 96A, for clause (d), the following clause shall be substituted, namely:-

`(d) "Authority" means the Authority for Advance Rulings as defined in clause (e) of section 28E of the Customs Act, 1962;`.

124.

Omission of section 96B.

- In the 1994 Act, section 96B shall be omitted.

125.

Amendment of section 96C.

- In the 1994 Act, in section 96C, in sub-section (3), for the words "two thousand and five hundred rupees", the words "ten thousand rupees" shall be substituted.

126.

Amendment of section 96D.

- In the 1994 Act, in section 96D, in sub-section (6), for the words "ninety days", the words "six months" shall be substituted.

127.

Insertion of new section 96HA.

- In the 1994 Act, after section 96H, the following section shall be inserted, namely:-

"96HA. Transitional provision. - On and from the date on which the Finance Bill, 2017 receives the assent of the President, every application and proceeding pending before the erstwhile Authority for Advance Rulings (Central Excise, Customs and Service Tax) shall stand transferred to the Authority from the stage at which such application or proceeding stood as on the date of such assent."

128.

Insertion of new sections 104 and 105.

- In the 1994 Act, after section 103, the following sections shall be inserted, namely:-

"104. Special provision for exemption in certain cases relating to long term lease of industrial plots. - (1) Notwithstanding anything contained in section 66, as it stood prior to the 1st day of July, 2012, or in section 66B, no service tax, leviable on one time upfront amount (premium, salami, cost, price, development charge or by whatever name called) in respect of taxable service provided or agreed to be provided by a State Government industrial development corporation or undertaking to industrial units by way of grant of long term lease of thirty years or more of industrial plots, shall be levied or collected during the period commencing from the 1st day of June, 2007 and ending with the 21st day of September, 2016 (both days inclusive).

(2)

Refund shall be made of all such service tax which has been collected, but which would not have been so collected, had sub-section (1) been in force at all material times.

(3)

Notwithstanding anything contained in this Chapter, an application for claim of refund of service tax shall be made within a period of six months from the date on which the Finance Bill, 2017 receives the assent of the President.

105. Special provision for exemption in certain cases relating to life insurance services provided to members of armed forces of Union. - (1) Notwithstanding anything contained in section 66, as it stood prior to the 1st day of July, 2012, or in section 66B, no service tax shall be levied or collected in respect of taxable services provided or agreed to be provided by the Army, Naval and Air Force Group Insurance Funds by way of life insurance to members of the Army, Navy and Air Force, respectively, under the Group Insurance Schemes of the Central Government, during the period commencing from the 10th day of September, 2004 and ending with the 1st day of February, 2017 (both days inclusive).

(2)

Refund shall be made of all such service tax which has been collected, but which would not have been so collected, had sub-section (1) been in force at all material times.

(3)

Notwithstanding anything contained in this Chapter, an application for the claim of refund of service tax shall be made within a period of six months from the date on which the Finance Bill, 2017 receives the assent of the President."

129.

Amendment of rule 2A of Service Tax (Determination of Value) Rules, 2006, retrospectively.

(1)

In the Service Tax (Determination of Value) Rules, 2006 made by the Central Government in exercise of the powers conferred by section 94 of the Finance Act, 1994, published in the Gazette of India vide notification of the Government of India in the Ministry of Finance (Department of Revenue) number G.S.R. 228(E), dated the 19th April, 2006,-

(a)

rule 2A as inserted by the Service Tax (Determination of Value) (Amendment) Rules, 2007 published vide number G.S.R. 375(E), dated the 22nd May, 2007; and

(b)

rule 2A as substituted by the Service Tax (Determination of Value) Second Amendment Rules, 2012 published vide number G.S.R. 431(E), dated the 6th June, 2012,

shall stand amended and shall be deemed to have been amended in the manner specified in column (3) of the Sixth Schedule, on and from and up to the corresponding date specified in column (4), against each of the rule specified in column (2) thereof.

(2)

Notwithstanding anything contained in any judgment, decree or order of any court, tribunal or other authority, any action taken or anything done or purported to have been taken or done at any time during the period specified in column (4) of the Sixth Schedule relating to the provisions as amended by sub-section (1) shall be deemed to be and deemed always to have been, for all purposes, as validly and effectively taken or done as if the amendment made by sub-section (1) had been in force at all material times.

(3)

For the purposes of sub-section (1), the Central Government shall have and shall be deemed to have the power to make rules with retrospective effect as if the Central Government had the power to make rules under section 94 of the Finance Act, 1994, retrospectively, at all material times.

Explanation. - For the removal of doubts, it is hereby declared that no act or omission on the part of any person shall be punishable as an offence which would not have been so punishable had this section not come into force.

Chapter VI

Miscellaneous

Part I ? Amendments to the Indian Trusts Act, 1882

130.

Commencement of this Part.

- The provisions of this Part shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

131.

Amendment of section 20 of Act

2 of 1882

.

- In section 20 of the Indian Trusts Act, 1882 [as substituted by section 2 of the Indian Trusts (Amendment) Act, 2016],-

(i)

for the words "invest the money in any of the securities or class of securities expressly authorised by the instrument of trust or", the words "make investments as expressly authorised by the instrument of trust or in any of the securities or class of securities" shall be substituted;

(ii)

in the proviso, the words "in any of the securities or class of securities mentioned above" shall be omitted.

Part II ? Amendments to the Indian Post Office Act, 1898

132.

Commencement of this Part.

- The provisions of this Part shall come into force on the 1st day of April, 2017.

133.

Amendment of section 7 of Act

6 of 1898

.

- In section 7 of the Indian Post Office Act, 1898,-

(a)

in sub-section (1), for the proviso, the following proviso shall be substituted, namely:-

"Provided that until such notification is issued, the rates set forth in the First Schedule shall be the rates chargeable under this Act.";

(b)

sub-section (2) shall be omitted.

Part III ? Amendments to the Reserve Bank of India Act, 1934

134.

Commencement of this Part.

- The provisions of this Part shall come into force on the 1st day of April, 2017.

135.

Amendment of section 31 of Act

2 of 1934

.

- In the Reserve Bank of India Act, 1934, in section 31, after sub-section (2), the following sub-section shall be inserted, namely:-

`(3) Notwithstanding anything contained in this section, the Central Government may authorise any scheduled bank to issue electoral bond.

Explanation. - For the purposes of this sub-section, ``electoral bond" means a bond issued by any scheduled bank under the scheme as may be notified by the Central Government.'

Part IV ? Amendments to the Representation of the People Act, 1951

136.

Commencement of this Part.

- The provisions of this Part shall come into force on the 1st day of April, 2017.

137.

Amendment of section 29C of Act

43 of 1951

.

- In the Representation of the People Act, 1951, in section 29C, in sub-section (1), the following shall be inserted, namely:-

`Provided that nothing contained in this sub-section shall apply to the contributions received by way of an electoral bond.

Explanation. - For the purposes of this sub-section, "electoral bond" means a bond referred to in the Explanation to sub-section (3) of section 31 of the Reserve Bank of India Act, 1934.

Part V ? Amendment to the Securities Contracts (Regulation) Act, 1956

138.

Amendment of section 23J.

- In the Securities Contracts (Regulation) Act, 1956, in section 23J, the following Explanation shall be inserted, namely:-

"Explanation. - For the removal of doubts, it is clarified that the power of an adjudicating officer to adjudge the quantum of penalty under sections 23A to 23C shall be and shall always be deemed to have exercised under the provisions of this section."

Part VI ? Amendments to the Oil Industry (Development) Act, 1974

139.

Commencement of this Part.

- The provisions of this Part shall come into force on the 1st day of April, 2017.

140.

Amendment of section 18 of Act 47 of 1974.

- In the Oil Industry (Development) Act, 1974, in section 18, in sub-section (2), after clause (d), the following clauses shall be inserted, namely:-

"(e) for meeting any expenditure incurred by any Central Public Sector Undertaking in the oil and gas sector, on behalf of the Central Government;

(f)
for meeting expenditure on any scheme or activity by the Central Government relating to oil and gas sector.".

Part VII ? Repeal of the Research and Development Cess Act, 1986.

141.

Commencement of this Part.

- The provisions of this Part shall come into force on the 1st day of April, 2017.

142.

Repeal of Act

32 of 1986

, Savings.

- The Research and Development Cess Act, 1986 is hereby repealed.

143.

Savings.

(1)

The repeal of the Research and Development Cess Act, 1986 by this Act shall not-

(a)

affect any other enactment in which the repealed enactment has been applied, incorporated or referred to;

(b)

affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

(c)

affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or recognised or derived by, in or from the enactment hereby repealed;

(d)

revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not now existing or in force.

(2)

The mention of particular matter in sub-section (1) shall not be held to prejudice or affect the general application of section 6 of the General Clauses Act, 1897, with regard to the effect of repeal.

144.

Collection and payment of arrears of duties.

- Notwithstanding the repeal of the Research and Development Cess Act, 1986, the proceeds of duties levied under the said Act immediately preceding the date of commencement of this Part,-

(i)

if collected by the collecting agencies but not paid into the Reserve Bank of India; or

(ii)

if not collected by the collecting agencies, shall be paid or, as the case may be, collected and paid into the Reserve Bank of India for being credited to the Consolidated Fund of India.

Part VIII ? Amendments to the Securities and Exchange Board of India Act, 1992

145.

Commencement of this Part.

- The provisions of this Part shall come into force on such date as the Central Government may, by notification, appoint, and different dates may be appointed for different provisions of this Part.

146.

Amendment of Act

15 of 1992

.

- In the Securities and Exchange Board of India Act, 1992 (hereafter in this Part referred to as the principal Act), in section 2, in sub-section (1),-

(A)

after clause (d), the following clauses shall be inserted, namely:-

`(da) "Insurance Regulatory and Development Authority" means the Insurance Regulatory and Development Authority of India established under sub-section (1) of section 3 of the Insurance Regulatory and Development Authority Act, 1999;

(db)

"Judicial Member" means a Member of the Securities Appellate Tribunal appointed under sub-section (1) of section 15MA and includes the Presiding Officer;";

(B)

after clause (f), the following clause shall be inserted, namely:-

`(fa) "Pension Fund Regulatory and Development Authority" means the Pension Fund Regulatory and Development Authority established under subsection (1) of section 3 of the Pension Fund Regulatory and Development Authority Act, 2013;";

(C)

after clause (i), the following clause shall be inserted, namely:-

`(j) "Technical Member" means a Technical Member appointed under sub-section (1) of section 15MB.'.

147.

Amendment of section 15J.

- In section 15J of the principal Act, the following Explanation shall be inserted, namely:-

"Explanation. - For the removal of doubts, it is clarified that the power of an adjudicating officer to adjudge the quantum of penalty under sections 15A to 15E, clauses (b) and (c) of section 15F, 15G, 15H and 15HA shall be and shall always be deemed to have been exercised under the provisions of this section.".

148.

Amendment of Chapter VIB.

- In Chapter VIB of the principal Act,-

(a)

in the chapter heading, for the words "Appellate Tribunal", the words "Securities Appellate Tribunal" shall be substituted;

(b)

for section 15K, the following section shall be substituted, namely:-

"15K. Establishment of Securities Appellate Tribunal. - (1) The Central Government shall, by notification, establish a Tribunal to be known as the Securities Appellate Tribunal to exercise the jurisdiction, powers and authority conferred on it by or under this Act or any other law for the time being in force.

(2)

The Central Government shall also specify in the notification referred to in sub-section (1), the matters and places in relation to which the Securities Appellate Tribunal may exercise jurisdiction.";

(c)

for section 15L, the following section shall be substituted, namely:-

"15L. Composition of Securities Appellate Tribunal. - (1) The Securities Appellate Tribunal shall consist of a Presiding Officer and such number of Judicial Members and Technical Members as the Central Government may determine, by notification, to exercise the powers and discharge the functions conferred on the Securities Appellate Tribunal under this Act or any other law for the time being in force.

(2)

Subject to the provisions of this Act,-

(a)

the jurisdiction of the Securities Appellate Tribunal may be exercised by Benches thereof;

(b)

a Bench may be constituted by the Presiding Officer of the Securities Appellate Tribunal with two or more Judicial or Technical Members as he may deem fit:

Provided that every Bench constituted shall include at least one Judicial Member and one Technical Member;

(c)

the Benches of the Securities Appellate Tribunal shall ordinarily sit at Mumbai and may also sit at such other places as the Central Government may, in consultation with the Presiding Officer, notify.

(3)

Notwithstanding anything contained in sub-section (2), the Presiding Officer may transfer a Judicial Member or a Technical Member of the Securities Appellate Tribunal from one Bench to another Bench.";

(d)

for section 15M, the following sections shall be substituted, namely:-

"15M. Qualification for appointment as Presiding Officer, Judicial Member and Technical Member. - A person shall not be qualified for appointment as the Presiding Officer or a Judicial Member or a Technical Member of the Securities Appellate Tribunal, unless he-

(a)

is, or has been, a Judge of the Supreme Court or a Chief Justice of a High Court or a Judge of High Court for at least seven years, in the case of the Presiding Officer; and

(b)

is, or has been, a Judge of High Court for at least five years, in the case of a Judicial Member; or

(c)

in the case of a Technical Member-

(i)

is, or has been, a Secretary or an Additional Secretary in the Ministry or Department of the Central Government or any equivalent post in the Central Government or a State Government; or

(ii)

is a person of proven ability, integrity and standing having special knowledge and professional experience, of not less than fifteen years, in financial sector including securities market or pension funds or commodity derivatives or insurance.

15MA.

Amendment of Presiding Officer and Judicial Members. - The Presiding Officer and Judicial Members of the Securities Appellate Tribunal shall be appointed by the Central Government in consultation with the Chief Justice of India or his nominee.

15MB.

Search-cum-Selection Committee for appointment of Technical Members. - (1) The Technical Members of the Securities Appellate Tribunal shall be appointed by the Central Government on the recommendation of a Search-cum-Selection Committee consisting of the following, namely:-

(a)

Presiding Officer, Securities Appellate Tribunal-Chairperson;

(b)

Secretary, Department of Economic Affairs-Member;

(c)

Secretary, Department of Financial Services-Member; and

(d)

Secretary, Legislative Department or Secretary, Department of Legal Affairs-Member.

(2)

The Secretary, Department of Economic Affairs shall be the Convener of the Search-cum-Selection Committee.

(3)

The Search-cum-Selection Committee shall determine its procedure for recommending the names of persons to be appointed under sub-section (1).

15MC.

Vacancy not to invalidate selection proceeding. - (1) No appointment of the Presiding Officer, a Judicial Member or a Technical Member of the Securities Appellate Tribunal shall be invalid merely by reason of any vacancy or any defect in the constitution of the Search-cum-Selection Committee.

(2)

A member or part time member of the Board or the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority, or any person at senior management level equivalent to the Executive

Director in the Board or in such Authorities, shall not be appointed as Presiding Officer or Member of the Securities Appellate Tribunal, during his service or tenure as such with the Board or with such Authorities, as the case may be, or within two years from the date on which he ceases to hold office as such in the Board or in such Authorities.

(3)

The Presiding Officer or such other member of the Securities Appellate Tribunal, holding office on the date of commencement of Part VIII of Chapter VI of the Finance Act, 2017 shall continue to hold office for such term as he was appointed and the other provisions of this Act shall apply to such Presiding Officer or such other member, as if Part VIII of Chapter VI of the Finance Act, 2017 had not been enacted.";

(e)

for section 15N, the following section shall be substituted, namely:-

"15N. Tenure of office of Presiding Officer, Judicial or Technical Members of Securities Appellate Tribunal. - The Presiding Officer or every Judicial or Technical Member of the Securities Appellate Tribunal shall hold office for a term of five years from the date on which he enters upon his office, and shall be eligible for reappointment for another term of maximum five years:

Provided that no Presiding Officer or the Judicial or Technical Member shall hold office after he has attained the age of seventy years.";

(f)

after section 15P, the following section shall be inserted, namely:-

"15PA. Member to act as Presiding Officer in certain circumstances. - In the event of occurrence of any vacancy in the office of the Presiding Officer of the Securities Appellate Tribunal by reason of his death, resignation or otherwise, the senior-most Judicial Member of the Securities Appellate Tribunal shall act as the Presiding Officer until the date on which a new Presiding Officer is appointed in accordance with the provisions of this Act.";

(g)

in section 15Q, for sub-section (2), the following sub-section shall be substituted, namely:-

"(2) The Central Government may, after an inquiry made by the Judge of the Supreme Court, remove the Presiding Officer or Judicial Member or Technical Member of the Securities Appellate Tribunal, if he-

(a)

is, or at any time has been adjudged as an insolvent;

(b)

has become physically or mentally incapable of acting as the Presiding Officer, Judicial or Technical Member;

(c)

has been convicted of any offence which, in the opinion of the Central Government, involves moral turpitude;

(d)

has, in the opinion of the Central Government, so abused his position as to render his continuation in office detrimental to the public interest; or

(e)

has acquired such financial interest or other interest as is likely to affect prejudicially his functions as the Presiding Officer or Judicial or Technical Member:

Provided that he shall not be removed from office under clauses (d) and (e), unless he has been given a reasonable opportunity of being heard in the matter.";

(h)

In section 15T,-

(I)

in sub-section (1),-

(A)

in clause (b), for the words "under this Act," the words "under this Act; or" shall be substituted;

(B)

after clause (b) and before the long line, the following clause shall be inserted, namely:-

"(c) by an order of the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority,";

(II)

in sub-section (3), after the words "adjudicating officer", the words "or the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority" shall be inserted;

(III)

in sub-section (5), after the words "the Board", the words "or the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority, as the case may be" shall be inserted;

(i)

in section 15U, after sub-section (3), the following sub-sections shall be inserted, namely:-

"(4) Where Benches are constituted, the Presiding Officer of the Securities Appellate Tribunal may, from time to time make provisions as to the distribution of the business of the Securities Appellate Tribunal amongst the Benches and also provide for the matters which may be dealt with, by each Bench.

(5)

On the application of any of the parties and after notice to the parties, and after hearing such of them as he may desire to be heard, or on his own motion without such notice, the Presiding Officer of the Securities Appellate Tribunal may transfer any case pending before one Bench, for disposal, to any other Bench.

(6)

If a Bench of the Securities Appellate Tribunal consisting of two members differ in opinion on any point, they shall state the point or points on which they differ, and make a reference to the Presiding Officer of the Securities Appellate Tribunal who shall either hear the point or points himself or refer the case for hearing only on such point or points by one or more of the other members of the Securities Appellate Tribunal and such point or points shall be decided according to the opinion of the majority of the members of the Securities Appellate Tribunal who have heard the case, including those who first heard it."

Part IX ? Amendment to the Depositories Act, 1996

149.

Amendment of section 19-I.

- In the Depositories Act, 1996, in section 19-I, the following Explanation shall be inserted, namely:-

"Explanation. - For the removal of doubts, it is clarified that the power of an adjudicating officer to adjudge the quantum of penalty under sections 19A to 19F shall be and shall always be deemed to have been exercised under the provisions of this section."

Part X ? Amendment to the Finance Act, 2005

150.

Amendment of Act 18 of 2005.

- In the Finance Act, 2005, the Seventh Schedule shall be amended in the manner specified in the Seventh Schedule.

Part XI ? Amendments to the Payment and Settlement Systems Act, 2007

151.

Commencement of this Part.

- The provisions of this Part shall come into force on such date as the Central Government may, by notification, appoint, and different dates may be appointed for different provisions of this Part.

152.

Amendment of Act

51 of 2007

.

- In the Payment and Settlement Systems Act, 2007 (hereafter in this Part referred to as the principal Act), for Chapter II, the following Chapter shall be substituted, namely:-

Chapter II

Designated Authority

3. Designated authority. - (1) The Reserve Bank shall be the designated authority for the regulation and supervision of payment systems under this Act.

(2)

The Reserve Bank shall exercise the powers, perform the functions and discharge the duties conferred on it under this Act through a Board to be known as the "Payments Regulatory Board".

(3)

The Board shall consist of the following members, namely:-

- (a)
the Governor of the Reserve Bank-Chairperson, ex officio;
- (b)
the Deputy Governor of the Reserve Bank in-charge of the Payment and Settlement Systems-Member, ex officio;
- (c)
one officer of the Reserve Bank to be nominated by the Central Board of the Reserve Bank-Member, ex officio; and
- (d)
three persons to be nominated by the Central Government-Members.

(4)
The powers and functions of the Board referred to in sub-section (2), the time and venue of its meetings, the procedures to be followed in such meetings (including the quorum at such meetings) and other matters incidental thereto shall be such as may be prescribed.'

153.

Amendment of section 38.

- In section 38 of the principal Act, in sub-section (2), in clause (a), for the words, brackets and figure "Committee constituted under sub-section (2)", the words, brackets and figure "Board referred to in sub-section (2)" shall be substituted.

Part XII ? Amendment to the Companies Act, 2013

154.

Amendment of section 182.

- In the Companies Act, 2013, in section 182-

- (i)
in sub-section (1),-
 - (a)
first proviso shall be omitted;
 - (b)
in the second proviso, -
 - (A)
the word "further" shall be omitted;
 - (B)
the words "and the acceptance" shall be omitted;
- (ii)

for sub-section (3), the following shall be substituted, namely:-

"(3) Every company shall disclose in its profit and loss account the total amount contributed by it under this section during the financial year to which the account relates.

(3A)

Notwithstanding anything contained in sub-section (1), the contribution under this section shall not be made except by an account payee cheque drawn on a bank or an account payee bank draft or use of electronic clearing system through a bank account:

Provided that a company may make contribution through any instrument, issued pursuant to any scheme notified under any law for the time being in force, for contribution to the political parties."

Part XIII ? Amendment to the Finance Act, 2016

155.

Amendment of Act 28 of 2016.

- In the Finance Act, 2016,-

- (i)
in section 50, for the words, figures and letters "with effect from the 1st day of April, 2017", the words, figures and letters "and shall be deemed to have been substituted with effect from the 1st day of April, 2013" shall be substituted;
- (ii)
in section 197, clause (c) shall be omitted and shall be deemed to have been omitted with effect from the 1st day of

June, 2016.

'Part XIV Amendments to certain Acts to Provide for Merger of Tribunals and Other Authorities and Conditions of Service of Chairpersons, Members, Etc.

A.-Preliminary

156.

Commencement of this Part.

- The provisions of this Part shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for different provisions of this Part and any reference in any provision to the commencement of this Part shall be construed as a reference to the coming into force of that provision.

157.

Definitions.

- In this Part, unless the context otherwise requires,-

(a)

"appointed day", in relation to any provision of this Part, means such date as the Central Government may, by notification in the Official Gazette, appoint;

(b)

"Authority" means the Authority, other than Tribunals and Appellate Tribunals, specified in the Eighth Schedule or Ninth Schedule, as the case may be;

(c)

"notification" means a notification published in the Official Gazette;

(d)

"Schedule" means the Eighth Schedule and Ninth Schedule appended to this Act.

B.-Amendments to the Industrial Disputes Act, 1947 and the Employees' Provident Funds and Miscellaneous Provisions Act, 1952.

158.

Amendment of Act

14 of 1947

.

- In the Industrial Disputes Act, 1947,-

(a)

in section 7A, after sub-section (1), the following sub-section shall be inserted, namely:-

"(1A) The Industrial Tribunal constituted by the Central Government under sub-section (1) shall also exercise, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, the jurisdiction, powers and authority conferred on the Tribunal referred to in section 7D of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952.";

(b)

after section 7C, the following section shall be inserted, namely:-

"7D. Qualifications, terms and conditions of service of Presiding Officer. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation and removal and other terms and conditions of service of the Presiding Officer of the Industrial Tribunal appointed by the Central Government under sub-section (1) of section 7A, shall, after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be governed by the provisions of section 184 of that Act:

Provided that the Presiding Officer appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

159.

Amendment of Act

19 of 1952

.

- In the Employees' Provident Funds and Miscellaneous Provisions Act, 1952,-

(a)

in section 2, for clause (m), the following clause shall be substituted, namely:-

'(m) "Tribunal" means the Industrial Tribunal referred to in section 7 D;';

(b)

for section 7D, the following section shall be substituted, namely:-

"7D. Tribunal. - The Industrial Tribunal constituted by the Central Government under sub-section (1) of section 7A of the Industrial Disputes Act, 1947 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Tribunal for the purposes of this Act and the said Tribunal shall exercise the jurisdiction, powers and authority conferred on it by or under this Act.";

(c)

sections 7E, 7F, 7G ,7H, 7M and 7N shall be omitted;

(d)

for section 18A, the following section shall be substituted, namely:-

"18A. Authorities and inspector to be public servant. - The authorities referred to in section 7A and every inspector shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code.";

(e)

in section 21, in sub-section (2), clause (a) shall be omitted.

C.-Amendments to The Copyright Act, 1957 and the Trade Marks Act, 1999.

160.

Amendment of Act

14 of 1957

.

- In the Copy Right Act, 1957,-

(a)

for the words "Copyright Board", wherever they occur, the words "Appellate Board" shall be substituted;

(b)

in section 2, after clause (a), the following clause shall be inserted, namely:-

'(aa) "Appellate Board" means the Appellate Board referred to in section 11';

(c)

for section 11, the following section shall be substituted, namely:-

"11. Appellate Board. - The Appellate Board established under section 83 of the Trade Marks Act, 1999 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Appellate Board for the purposes of this Act and the said Appellate Board shall exercise the jurisdiction, powers and authority conferred on it by or under this Act.";

(d)

in section 12, sub-sections (3) and (4) shall be omitted;

(e)

in section 78, in sub-section (2), clause (a) shall be omitted.".

161.

Amendment of Act

47 of 1999

.

- In the Trade Marks Act, 1999,-

(a)

for the word "Chairman" or "Vice-Chairman", wherever it occurs, the word "Chairperson" or "Vice-Chairperson" shall be substituted;

(b)

in section 83, after the words "under this Act", the words and figures "and under the Copyright Act, 1957" shall be inserted;

(c)

after section 89, the following section shall be inserted, namely:-

"89A. Qualifications, terms and conditions of service of Chairperson, Vice-Chairperson and Member. - Notwithstanding anything in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the Chairperson, Vice-Chairperson and other Members of the Appellate Board appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson, Vice-Chairperson and other Members appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017, had not come into force."

D.-Amendments To The Railway Claims Tribunal Act, 1987 and The Railways Act, 1989.

162.

Amendment of Act

54 of 1987

.

- In the Railway Claims Tribunal Act, 1987,-

(a)

in section 3, after the words "under this Act", the words, letters and figures "and under Chapter VII of the Railways Act,1989" shall be inserted;

(b)

after section 9, the following section shall be substituted, namely:-

"9A. Qualifications, terms and conditions of service of Chairman, Vice-Chairman and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the Chairman, Vice-Chairman and other Members of the Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairman, Vice-Chairman and Members appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017, had not come into force.";

(c)

in section 13, after sub-section (IA), the following sub-section shall be inserted, namely:-

"(1B) The Claims Tribunal shall also exercise, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, the jurisdiction, powers and authority conferred on the Tribunal under Chapter VII of the Railways Act,1989.";

(d)

in section 15, for the words, brackets, figures and letter "sub-sections (1) and (1A)", the words, brackets, figures and letters "sub-sections (1), (1A) and (1B)" shall be substituted;

(e)

in section 24, in sub-section (1), for the words, brackets, figure and letter "or, as the case may be, the date of commencement of the provisions of sub-section (1A)", at both the places where they occur, the words, brackets, figures and letters "or the date of commencement of the provisions of sub-section (1A), or, as the case may be, the date of commencement of the provisions of sub-section (1B)" shall be substituted.

163.

Amendment of Act

24 of 1989

.

- In the Railways Act, 1989,-

(a)

in section 2, for clause (40), the following clause shall be substituted, namely:-

'(40) "Tribunal" means the Tribunal referred to in section 33;"

(b)

in Chapter VII, for the heading, the following heading shall be substituted, namely:-

"Tribunal";

(c)

for section 33, the following section shall be substituted, namely:-

"33. Tribunal. - The Railway Claims Tribunal established under section 3 of the Railway Claims Tribunal Act, 1987 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Tribunal for the purposes of this Act and the said Tribunal shall exercise the jurisdiction, authority and powers conferred on it by or under this Act.";

(d)

sections 34 and 35 shall be omitted;

(e)

in section 48, in sub-section (2), clause (a) shall be omitted.

E.-Amendments to the Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976 and the Foreign Exchange Management Act, 1999.

164.

Amendment of Act

13 of 1976

.

- In the Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976,-

(a)

in section 12, in sub-section (1), after clause (c), the following clause shall be inserted, namely:-

"(d) by the Adjudicating Authorities, Competent Authorities and the Qualifications, Special Director (Appeals) under the Foreign Exchange Management Act, 1999.";

(b)

after section 12, the following section shall be inserted, namely:-

"12A. Qualifications, terms and conditions of service of Chairperson, and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairperson and other members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson and other members appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

165.

Amendment of Act

42 of 1999

.

- In the Foreign Exchange Management Act, 1999,-

(a)

in section 2,-

(i)

for clause (b), the following clause shall be substituted, namely:-

'(b) "Appellate Tribunal" means the Appellate Tribunal referred to in section 18;"

(ii)

in clause (zc), for the word and figures "section 18", the word and figures "section 17" shall be substituted;

(b)

for section 18, the following section shall be substituted, namely:-

"18. Appellate Tribunal. - The Appellate Tribunal constituted under sub-section (1) of section 12 of the Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976, shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Appellate Tribunal for the purposes of this Act and the said Appellate Tribunal shall exercise the jurisdiction, powers and authority conferred on it by or under this Act.";

(c)

section 20 shall be omitted;

(d)

for section 21, the following section shall be substituted, namely:-

"21. Qualifications, for appointment of Special Director (Appeals). - A person shall not be qualified for appointment as a Special Director (Appeals) unless he-

(a)
has been a member of the Indian Legal Service and has held a post in Grade I of that Service; or

(b)
has been a member of the Indian Revenue Service and has held a post equivalent to a Joint Secretary to the Government of India.";

(e)
section 22 shall be omitted;

(f)
for section 23, the following section shall be substituted, namely:-

"23. Terms and conditions of service of Special Director (Appeals). - The salary and allowances payable to and the other terms and conditions of service of the Special Director (Appeals) shall be such as may be prescribed.";

(g)
sections 24, 25 and 26 shall be omitted;

(h)
for section 27, the following section shall be substituted, namely:-

"27. Staff of Special Director (Appeals). - (1) The Central Government shall provide the office of the Special Director (Appeals) with such officers and employees as it may deem fit.

(2)
The officers and employees of the office of the Special Director (Appeals) shall discharge their functions under the general superintendence of the Special Director (Appeals).

(3)
The salaries and allowances and other terms and conditions of service of the officers and employees of the office of the Special Director (Appeals) shall be such as may be prescribed.";

(i)
sections 29, 30 and 31 shall be omitted;

(j)
in section 32,-

(i)
for the words and brackets "Appellate Tribunal or the Special Director (Appeals), as the case may be", at both the places where they occur, the words and brackets "Special Director (Appeals)" shall be substituted;

(ii)
in sub-section (1), for the words and brackets "Appellate Tribunal or the Special Director (Appeals)", the words and brackets "Special Director (Appeals)" shall be substituted;

(k)
for section 33, the following section shall be substituted, namely:-

"33. Officers and employees, etc., to be public servant. - The Adjudicating Authority, Competent Authority and the Special Director (Appeals) and other officers and employees of the Special Director (Appeals) shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.";

(l)
in section 46, in sub-section (2),-

(i)
in clause (e), for the words and brackets "Chairperson and other Members of the Appellate Tribunal and the Special Director (Appeals)", the words and brackets "Special Director (Appeals)" shall be substituted;

(ii)
in clause (f), for the words and brackets "Appellate Tribunal and the office of the Special Director (Appeals)", the words and brackets "office of the Special Director (Appeals)" shall be substituted.

F.-Amendments to the Airports Authority of India Act, 1994 and the Control of National Highways (Land and Traffic) Act, 2002.

Amendment of Act
55 of 1994

- In the Airports Authority of India Act, 1994,-

(a)

in section 28-I, in sub-section (1), after the words "under this Act", the words, brackets and figures "and the Control of National Highways (Land and Traffic) Act, 2002" shall be inserted;

(b)

after section 28J, the following section shall be inserted, namely:-

"28JA. Qualifications, terms and conditions of service of Chairperson. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairperson of the Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

167.

Amendment of Act
13 of 2003

- In the Control of National Highways (Land and Traffic) Act, 2002,-

(a)

in section 2, for clause (1), the following clause shall be substituted, namely:-

`(1) "Tribunal" means the Airport Appellate Tribunal referred to in sub section (1) of section 5;";

(b)

in Chapter II, for the heading, the following heading shall be substituted, namely:-

"Highways Administration And Tribunals, Etc.";

(c)

in section 5,-

(i)

for sub-section (1), the following sub-section shall be substituted, namely:-

"(1) The Airport Appellate Tribunal established under section 28-I of the Airports Authority of India Act, 1994 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Tribunal for the purposes of this Act and the said Tribunal shall exercise the jurisdiction, powers and authority conferred on it by or under this Act.";

(ii)

in sub-section (2), for the words, brackets and figure "shall also specify, in the notification referred to in sub-section (1)", the words "shall specify, by notification in the Official Gazette", shall be substituted;

(d)

sections 6, 7, 8, 9, 10, 11, 12 and 13 shall be omitted;

(e)

for section 44, the following section shall be substituted, namely:-

"44. Officers of Highways Administration to be public servant. - The officer or officers constituting the Highways Administration and any other officer authorised by such Administration under this Act, shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.";

(f)

in section 45, for the words "the Presiding Officer of the Tribunal or any other officer of the Central Government or an officer or employee of the Tribunal", the words "any other officer of the Central Government" shall be substituted;

(g)

in section 50, in sub-section (2), clauses (b), (c), (d) and (e) shall be omitted.

G.-Amendments to The Telecom Regulatory Authority of India Act, 1997, The Information Technology Act, 2000 and the

Airports Economic Regulatory Authority of India Act, 2008.

168.

Amendment of Act

24 of 1997

- In the Telecom Regulatory Authority of India Act, 1997,-

(a)

in section 14, after clause (b), the following clause shall be inserted, namely:-

"(c) exercise jurisdiction, powers and authority conferred on-

(i)

the Appellate Tribunal under the Information Technology Act, 2000; and

(ii)

the Appellate Tribunal under the Airports Economic Regulatory Authority of India Act, 2008.";

(b)

after section 14G, the following section shall be substituted, namely:-

"14GA. Qualifications, terms and conditions of service of Chairperson and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairperson and other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

169.

Amendment of Act

21 of 2000

- In the Information Technology Act, 2000,-

(a)

for the words "Cyber Appellate Tribunal", wherever they occur, the words "Appellate Tribunal" shall be substituted;

(b)

in section 2, in sub-section (1),-

(i)

after clause (d), the following clause shall be inserted, namely:-

'(da) "Appellate Tribunal" means the Appellate Tribunal referred to in sub-section (1) of section 48;'

(ii)

clause (n) shall be omitted;

(c)

in section 48,-

(i)

for the marginal heading, the following marginal heading shall be substituted, namely:-

"Appellate Tribunal";

(ii)

for sub-section (1), the following sub-section shall be substituted, namely:-

"(1) The Telecom Disputes Settlement and Appellate Tribunal established under section 14 of the Telecom Regulatory Authority of India Act, 1997 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Appellate Tribunal for the purposes of this Act and the said Appellate Tribunal shall exercise the jurisdiction, powers and authority conferred on it by or under this Act."

(iii)

in sub-section (2), for the words, brackets and figure "shall also specify, in the notification referred to in sub-section (1)", the words "shall specify, by notification" shall be substituted;

(d)

sections 49, 50, 51, 52, 52A, 52B, 52C, 53, 54 and 56, shall be omitted;

(e)

for section 82, the following section shall be substituted, namely:-

"82. Controller, Deputy Controller and Assistant Controller to be public servants. - The Controller, the Deputy Controller and the Assistant Controllers shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.";

(f)

in section 84, for the words "the Chairperson, Members, adjudicating officers and the staff of the Cyber Appellate Tribunal", the words "and adjudicating officers" shall be substituted;

(g)

in section 87, in sub-section (2), clauses (r), (s) and (t) shall be omitted.

170.

Amendment of Act 27 of 2008.

- In the Airports Economic Regulatory Authority of India Act, 2008,-

(a)

in the long title, the words "and also to establish Appellate Tribunal to adjudicate disputes and dispose of appeals" shall be omitted;

(b)

in section 2, for clause (d), the following clause shall be substituted, namely:-

'(d) "Appellate Tribunal" means the Telecom Disputes Settlement and Appellate Tribunal referred to in section 17;';

(c)

in section 17,-

(i)

for the marginal heading, the following marginal heading shall be substituted, namely:-

"Appellate Tribunal"

(ii)

for the portion beginning with the words "The Central Government" and ending with words "Appellate Tribunal", the words and figures "The Telecom Disputes Settlement and Appellate Tribunal established under section 14 of the Telecom Regulatory Authority of India Act, 1997 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Appellate Tribunal for the purposes of this Act and the said Appellate Tribunal shall exercise the jurisdiction, powers and authority conferred on it by or under this Act" shall be substituted;

(d)

sections 19, 20, 21, 22, 23, 24, 25, 26 and 27 shall be omitted;

(e)

in section 51, in sub-section (2), clauses (i), (j) and (k) shall be omitted.

H.-Amendments to The Competition Act, 2002 and The Companies Act, 2013.

171.

Amendment of Act

12 of 2003

.

- In the Competition Act, 2002,-

(a)

in section 2, for clause (ba), the following clause shall be substituted, namely:-

'(ba) "Appellate Tribunal" means the National Company Law Appellate Tribunal referred to in sub-section (1) of section 53A;';

(b)

in Chapter VIIIA, for the heading, the following heading shall be substituted, namely:-

"Appellate Tribunal";

(c)

for section 53A, the following section shall be substituted, namely:-

"53A. Appellate Tribunal. - The National Company Law Appellate Tribunal constituted under section 410 of the Companies Act, 2013 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Appellate Tribunal for the purposes of this Act and the said Appellate Tribunal shall-

(a)

hear and dispose of appeals against any direction issued or decision made or order passed by the Commission under sub-sections (2) and (6) of section 26, section 27, section 28, section 31, section 32, section 33, section 38, section 39, section 43, section 43A, section 44, section 45 or section 46 of this Act; and

(b)

adjudicate on claim for compensation that may arise from the findings of the Commission or the orders of the Appellate Tribunal in an appeal against any finding of the Commission or under section 42A or under sub-section (2) of section 53Q of this Act, and pass orders for the recovery of compensation under section 53N of this Act.";

(d)

sections 53C, 53D, 53E, 53F, 53G, 53H, 53-I, 53J, 53K, 53L, 53M and 53R shall be omitted;

(e)

in section 63, in sub-section (2), clauses (mb), (mc) and (md) shall be omitted.

172.

Amendment of Act

18 of 2013

.

- In the Companies Act, 2013,-

(a)

in section 410, for the words "for hearing appeals against the orders of the Tribunal", the following shall be substituted, namely:-

"for hearing appeals against,-

(a)

the order of the Tribunal under this Act; and

(b)

any direction, decision or order referred to in section 53N of the Competition Act, 2002 in accordance with the provisions of that Act.";

(b)

after section 417, the following section shall be inserted, namely: -

"417A. Qualifications, terms and conditions of service of Chairperson and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the Chairperson and other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

I.-Amendment to The Cinematograph Act, 1952

173.

Amendment of Act

37 of 1952

.

- In the Cinematograph Act, 1952, after section 5D, the following section shall be inserted, namely:-

"5E. Qualifications, terms and conditions of service of Chairman and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairman and other members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairman and member appointed before the commencement of Part XIV of Chapter VI of the Finance

Act, 2017, shall continue to be governed by the provisions of this Act and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

J.-Amendments to The Income- Tax Act, 1961

174.

Amendment of Act

43 of 1961

.

- In the Income Tax Act, 1962,-

(a)

after section 245-O, the following section shall be inserted, namely:-

"245-OA. Qualifications, terms and conditions of service of Chairman, Vice-Chairman and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairman, Vice-Chairman and other Members of the Authority appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairman, Vice-Chairman and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force.";

(b)

after section 252, the following section shall be inserted, namely:-

"252A. Qualifications, terms and conditions of service of President, Vice-President and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the President, Vice-President and other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the President, Vice-President and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force.";

K.-Amendment to The Customs Act, 1962

175.

Amendment of Act

52 of 1962

.

- In the Customs Act, 1962, in section 129, after sub-section (6), the following sub-section shall be inserted, namely:-

"(7) Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the President, Vice-President or other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the President, Vice-President and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

L.-Amendment to the Administrative Tribunals Act, 1985

176.

Amendment of Act

13 of 1985

.

- In the Administrative Tribunals Act, 1985, after section 10A, the following section shall be inserted, namely:-

"10B. Qualifications, terms and conditions of service of Chairman and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairman and other Members of the Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairman and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

M-Amendment to The Consumer Protection Act, 1986

177.

Amendment of Act

68 of 1986

.
- In the Consumer Protection Act, 1986, after section 22D, the following section shall be inserted, namely:-

"22E. Qualifications, terms and conditions of service of President and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the President and other members of the National Commission appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the President and member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

N.-Amendment to The Securities and Exchange Board of India Act, 1992

178.

Amendment of Act

15 of 1992

.
- In the Securities and Exchange Board of India Act, 1992, after section 15Q, the following section shall be inserted, namely:-

"15QA. Qualifications, terms and conditions of service of Presiding Officer and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Presiding Officer and other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Presiding Officer and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

O.-Amendments to The Recovery of Debts Due to Banks and Financial Institutions Act, 1993

179.

Amendment of Act

51 of 1993

.
- In the Recovery of Debts due to Banks and Financial Institutions Act, 1993,-

(a)

after section 6, the following section shall be inserted, namely:-

"6A. Qualifications, terms and conditions of service of Presiding Officer. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Presiding Officer of the Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Presiding Officer appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force.";

(b)

after section 15, the following section shall be inserted, namely:-

"15A. Qualifications, terms and conditions of service of Chairperson. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the terms and

conditions of service of the Chairperson of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

P.-Amendment to The Electricity Act, 2003

180.

Amendment of Act

36 of 2003

.

- In the Electricity Act, 2003, after section 47, the following section shall be inserted, namely:-

"117A. Qualifications, terms and conditions of service of Chairperson and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairperson and other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

Q.-Amendment to the Armed Forces Tribunal Act, 2007

181.

Amendment of Act

55 of 2007

.

- In the Armed Force Tribunal Act, 2007, after section 9, the following section shall be inserted, namely: -

"9A. Qualifications, terms and conditions of service of Chairperson and Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and terms and conditions of service of the Chairperson and other Members of the Appellate Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson and Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

R.-Amendment to The National Green Tribunal Act, 2010

182.

Amendment of Act

19 of 2010

.

- In the National Green Tribunal Act, 2010, after section 10, the following section shall be inserted, namely:-

"10A. Qualifications, terms and conditions of service of Chairperson, Judicial Member and Expert Member. - Notwithstanding anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the Chairperson, Judicial Member and Expert Member of the Tribunal appointed after the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall be governed by the provisions of section 184 of that Act:

Provided that the Chairperson, Judicial Member and Expert Member appointed before the commencement of Part XIV of Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force."

S.-Conditions of Service of Chairperson and Members of Tribunals, Appellate Tribunals and Other Authorities

183.

Application of section 184.

- Notwithstanding anything to the contrary contained in the provisions of the Acts specified in column (3) of the Eighth

Schedule, on and from the appointed day, provisions of section 184 shall apply to the Chairperson, Vice-Chairperson, Chairman, Vice-Chairman, President, Vice-President, Presiding Officer or Member of the Tribunal, Appellate Tribunal or, as the case may be, other Authorities as specified in column (2) of the said Schedule:

Provided that the provisions of section 184 shall not apply to the Chairperson, Vice-Chairperson, Chairman, Vice-Chairman, President, Vice-President, Presiding Officer or, as the case may be, Member holding such office as such immediately before the appointed day.

184.

Qualifications, appointment, term and conditions of service, salary and allowances, etc., of Chairperson, Vice-Chairperson and Members, etc., of the Tribunal, Appellate Tribunal and other Authorities.

(1)

The Central Government may, by notification, make rules to provide for qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the Chairperson, Vice-Chairperson, Chairman, Vice-Chairman, President, Vice-President, Presiding Officer or Member of the Tribunal, Appellate Tribunal or, as the case may be, other Authorities as specified in column (2) of the Eighth Schedule:

Provided that the Chairperson, Vice-Chairperson, Chairman, Vice-Chairman, President, Vice-President, Presiding Officer or Member of the Tribunal, Appellate Tribunal or other Authority shall hold office for such term as specified in the rules made by the Central Government but not exceeding five years from the date on which he enters upon his office and shall be eligible for reappointment:

Provided further that no Chairperson, Vice-Chairperson, Chairman, Vice-Chairman, President, Vice-President, Presiding Officer or Member shall hold office as such after he has attained such age as specified in the rules made by the Central Government which shall not exceed,-

(a)

in the case of Chairperson, Chairman or President, the age of seventy years;

(b)

in the case of Vice-Chairperson, Vice-Chairman, Vice-President, Presiding Officer or any other Member, the age of sixty-seven years:

(2)

Neither the salary and allowances nor the other terms and conditions of service of Chairperson, Vice-Chairperson, Chairman, Vice-Chairman, President, Vice-President, Presiding Officer or Member of the Tribunal, Appellate Tribunal or, as the case may be, other Authority may be varied to his disadvantage after his appointment.

T.-Miscellaneous

[The previous Rules framed by the Center under Section 184 of the Finance Act, namely the Tribunal, Appellate Tribunal and Other Authorities (Qualifications, Experience and Other Conditions of Service of Members) Rules 2017, were struck down by the Constitution Bench of the Supreme Court in Nov 2019 in the case of Rojer Mathew v South Indian Bank. The ground was that the Rules diluted judicial independence, as the Central Government had excessive say in the matter of appointment and removal of Tribunal members. The Court also found the Rules to be vague in respect of qualifications prescribed for members. The court held that the Section 184 of the Finance Act, 2017 did not suffer from excessive delegation of legislative functions as there are adequate principles to guide framing of delegated legislation, which would include the binding dictums of this Court and thus it rules out the possibility of uncertainty. The Rules formulated by the Central Government under Section 184 of the Finance Act, 2017 being contrary to the parent enactment and the principles envisaged in the Constitution as interpreted by this Court, are hereby struck down in entirety. The Central Government was directed to re-formulate the Rules strictly in conformity and in accordance with the principles delineated by this Court. The court issued a writ of mandamus to the Ministry of Law and Justice to carry out ?Judicial Impact Assessment? and submit the result of the findings before the competent legislative authority. The Central Government in consultation with the Law Commission of India or any other expert body shall revisit the provisions of the statutes referable to the Finance Act, 2017 and place appropriate proposals before the Parliament for consideration of the need to remove direct appeals to the Supreme Court from orders of Tribunals. The present case is considered to be a landmark judgment to ensure the independence of the judiciary. The court has made sure the constitutional spirit is given priority and all the organs of the state function in accordance with principles like separation of power and basic structure doctrine. (<https://indiankanoon.org/doc/36423291/>, <https://indiankanoon.org/doc/36423291/>), <https://indiankanoon.org/doc/36423291/>, <https://indiankanoon.org/doc/36423291/>).

www.barandbench.com/columns/column-decoding-the-tribunal-judgment)]

185.

Transitional provisions.

(1)

Any person appointed as the Chairperson or Chairman, President or Vice-Chairperson or Vice-Chairman, Vice-President or Presiding Officer or Member of the Tribunals, Appellate Tribunals, or as the case may be, other Authorities specified in column (2) of the Ninth Schedule and holding office as such immediately before the appointed day, shall on and from the appointed day, cease to hold such office and such Chairperson or Chairman, President, Vice-Chairperson or Vice-Chairman, Vice-President or Presiding officer or Member shall be entitled to claim compensation not exceeding three months' pay and allowances for the premature termination of term of their office or of any contract of service.

(2)

The officers and other employees of the Tribunals, Appellate Tribunals and other Authorities specified in column (2) of the Ninth Schedule appointed on deputation, before the appointed day, shall, on and from the appointed day, stand reverted to their parent cadre, Ministry or Department.

(3)

Every officer or other employee of the Tribunal, Appellate Tribunal and other Authorities specified in column (2) of the Ninth Schedule employed on regular basis, by such Tribunal, Appellate Tribunal or other Authorities shall become, on and from the appointed day, the officer and other employee, of the corresponding Tribunal, Appellate Tribunal or other Authorities specified in column (3) of the said Schedule with same rights and privileges as to pension, gratuity and other like benefits as would have been admissible to him if he had continued to serve the Tribunal, Appellate Tribunal or other Authorities specified in column (2) of the said Schedule until his employment is duly terminated or until his remuneration, terms and conditions of employment are duly altered by such corresponding Tribunal, Appellate Tribunal or other Authorities, as the case may be, specified in column (3) of the Ninth Schedule or until the expiry of a period of one year from the appointed day if such officer or other employee opts not to continue to be the officer or other employee of such Tribunal, Appellate Tribunal or other Authorities within such period.

(4)

Any appeal, application or proceeding pending before the Tribunal, Appellate Tribunal or other Authorities specified in column (2) of the Ninth Schedule, before the appointed day, shall stand transferred to the corresponding Tribunal, Appellate Tribunal or other Authorities specified in column (3) of the said Schedule and the said Tribunal, Appellate Tribunal or other Authority shall, on and from the appointed day, deal with de novo or from the stage at which such appeal, application or proceeding stood before the date of their transfer and shall dispose them in accordance with the provisions of the Act specified in column (2) of the said Schedule.

(5)

The balance of all monies received by, or advanced to the Tribunal, Appellate Tribunal or other Authorities specified in column (2) of the Ninth Schedule and not spent by it before the appointed day, shall, on and from the appointed day, stand transferred to and vest in the Central Government which shall be utilised for the purposes stated in sub-section (7).

(6)

All property of whatever kind owned by, or vested in, the Tribunal, Appellate Tribunal or other Authorities specified in column (2) of the Ninth Schedule before the appointed day, shall stand transferred to, on and from the appointed day, and shall vest in the Central Government.

(7)

All liabilities and obligations of whatever kind incurred by the Tribunal, Appellate Tribunal or other Authorities specified in column (2) of the Ninth Schedule and subsisting immediately before the appointed day, shall, on and from the appointed day, be deemed to be the liabilities or obligations, as the case may be, of the corresponding Tribunal, Appellate Tribunal or other Authorities specified in column (3) of the Ninth Schedule; and any proceeding or cause of action, pending or existing immediately before the appointed day by or against the Tribunal, Appellate Tribunal or other Authorities specified in column (2) of the Ninth Schedule in relation to such liability or obligation may, on and from the appointed day, be continued or enforced by or against the corresponding Tribunal, Appellate Tribunal or other Authority specified in column (3) of the Ninth Schedule.

186.

General Power to make rules.

- Without prejudice to any other power to make rules contained elsewhere in this Part, the Central Government may, by notification, make rules generally to carry out the provisions of this Part.

187.

Power to amend Eighth Schedule.

(1)

If the Central Government is satisfied that it is necessary or expedient so to do, it may by notification published in the Official Gazette, amend the Eighth Schedule and thereupon the said Schedule shall be deemed to have been amended accordingly.

(2)

A copy of every notification issued under sub-section (1) shall be laid before each House of Parliament as soon as may be after it is issued.

188.

Rules to be laid before Parliament.

- Every rule made under this Part shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

189.

Removal of difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Part, the Central Government, may by general or special order published in the Official Gazette, make such provisions not inconsistent with the provisions of this Part as appear to it to be necessary or expedient for removing the difficulty.

(2)

No order under sub-section (1) shall be made after the expiry of three years from the appointed day.

(3)

Every order made under this section shall, as soon as may be after it is made, be laid before each Houses of Parliament.'.

The First Schedule

(See section 2)

Part I ? Income-Tax

Paragraph A

(I)

In the case of every individual other than the individual referred to in items (II) and (III) of this Paragraph or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, not being a case to which any other Paragraph of this Part applies,-

Rates of income-tax

(1) where the total income does not exceed Rs.

2,50,000

Nil;

(2) where the total income exceeds Rs. 2,50,000

but does not exceed Rs. 5,00,000

10 per cent. of the amount by which the total

income exceeds Rs. 2,50,000;

(3) where the total income exceeds Rs. 5,00,000

but does not exceed Rs. 10,00,000

Rs. 25,000 plus 20 per cent. of the amount by which the total income exceeds Rs. 5,00,000;
(4) where the total income exceeds Rs. 10,00,000
Rs. 1,25,000 plus 30 per cent. of the amount by which the total income exceeds Rs. 10,00,000.

(II)

In the case of every individual, being a resident in India, who is of the age of sixty years or more but less than eighty years at any time during the previous year,-

Rates of income-tax

(1)

where the total income does not exceed Rs. 3,00,000

Nil;

(2)

where the total income exceeds Rs. 3,00,000 but does not exceed Rs. 5,00,000

10 per cent. of the amount by which the total income exceeds Rs. 3,00,000;

(3)

where the total income exceeds Rs. 5,00,000 but does not exceed Rs. 10,00,000

Rs. 20,000 plus 20 per cent. of the amount by which the total income exceeds Rs. 5,00,000;

(4)

where the total income exceeds Rs. 10,00,000

Rs. 1,20,000 plus 30 per cent. of the amount by which the total income exceeds Rs. 10,00,000.

(III)

In the case of every individual, being a resident in India, who is of the age of eighty years or more at any time during the previous year,-

Rates of income-tax

(1)

where the total income does not exceed Rs. 5,00,000

Nil;

(2)

where the total income exceeds Rs. 5,00,000 but does not exceed Rs. 10,00,000

20 per cent. of the amount by which the total income exceeds Rs. 5,00,000;

(3)

where the total income exceeds Rs. 10,00,000

Rs. 1,00,000 plus 30 per cent. of the amount by which the total income exceeds Rs. 10,00,000.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, having a total income exceeding one crore rupees, be increased by a surcharge for the purpose of the Union calculated at the rate of fifteen per cent. of such income-tax:

Provided that in the case of persons mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a

total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph B

In the case of every co-operative society,-

Rates of income-tax

(1)

where the total income does not exceed Rs.10,000

10 per cent. of the total income;

(2)

where the total income exceeds Rs.10,000 but

does not exceed Rs. 20,000

Rs.1,000plus20 per cent. of the amount

by which the total income exceeds Rs.10,000;

(3)

where the total income exceeds Rs. 20,000

Rs. 3,000plus30 per cent. of the amount

by which the total income exceeds Rs. 20,000.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, in the case of every co-operative society, having a total income exceeding one crore rupees, be increased by a surcharge for the purposes of the Union calculated at the rate of twelve per cent. of such income-tax:

Provided that in the case of every co-operative society mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph C

In the case of every firm,-

Rate of income-tax

On the whole of the total income

30 per cent.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, in the case of every firm, having a total income exceeding one crore rupees, be increased by a surcharge for the purposes of the Union calculated at the rate of twelve per cent. of such income-tax:

Provided that in the case of every firm mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph D

In the case of every local authority,-

Rate of income-tax

On the whole of the total income

30 per cent.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, in the case of every local authority, having a total income exceeding one crore rupees, be increased by a surcharge for the purposes of the Union calculated at the rate of twelve per cent. of such income-tax:

Provided that in the case of every local authority mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph E

In the case of Company,-

Rate of income-tax

I. In the case of a domestic company,-

(i) where its total turnover or the gross receipt in the previous year 2014-15 does not exceed five crore rupees;

29 per cent. of the total Income

(ii) other than that referred to in item (i)

30 per cent. of the total Income

II. In the case of a company other than a domestic company,-

(i)

on so much of the total income as consists of,-

(a) royalties received from Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern after the 31st day of March, 1961 but before the 1st day of April, 1976; or

(b) fees for rendering technical services received from Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern after the 29th day of February, 1964 but before the 1st day of April, 1976, and where such agreement has, in either case, been approved by the Central Government

50 per cent.;

(ii) on the balance, if any, of the total income Surcharge on income-tax

40 per cent.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, be increased by a surcharge for the purposes of the Union calculated,-

(i)

in the case of every domestic company,-

(a)

having a total income exceeding one crore rupees but not exceeding ten crore rupees, at the rate of seven per cent. of such income-tax; and

(b)

having a total income exceeding ten crore rupees, at the rate of twelve per cent. of such income-tax;

(ii)

in the case of every company other than a domestic company,-

(a)

having a total income exceeding one crore rupees but not exceeding ten crore rupees, at the rate of two per cent. of such income-tax; and

(b)

having a total income exceeding ten crore rupees, at the rate of five per cent. of such income-tax:

Provided that in the case of every company having a total income exceeding one crore rupees but not exceeding ten crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided further that in the case of every company having a total income exceeding ten crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax and surcharge on a total income of ten crore rupees by more than the amount of income that exceeds ten crore rupees.

Part II ? Rates for Deduction of Tax at Source in Certain Cases

In every case in which under the provisions of sections 193, 194, 194A, 194B, 194BB, 194D , 194LBA, 194LBB, 194LBC and 195 of the Income-tax Act, tax is to be deducted at the rates in force, deduction shall be made from the income subject to the deduction at the following rates:-

Rate of income-tax

1. In the case of a person other than a company-

(a) where the person is resident in India-

(i) on income by way of interest other than "Interest on securities"

10 per cent.;

(ii) on income by way of winnings from lotteries, crossword puzzles, card games and other games of any sort

30 per cent.;

(iii) on income by way of winnings from horse races

30 per cent.;

(iv) on income by way of insurance commission

5 per cent.;

(v) on income by way of interest payable on-

10 per cent.;

(A) any debentures or securities for money issued by or on behalf of any local authority or a corporation established by a Central, State or Provincial Act;

(B) any debentures issued by a company where such debentures are listed on a recognised stock exchange in India in accordance with the Securities Contracts (Regulation) Act, 1956 (42 of 1956) and any rules made thereunder;

(C) any security of the Central or State Government;

(vi) on any other income

10 per cent.;

(b) where the person is not resident in India-

(i) in the case of a non-resident Indian-

(A) on any investment income

20 per cent.;

(B) on income by way of long-term capital gains referred to in section 115E or sub-clause (iii) of clause (c) of sub-section (1) of section 112

10 per cent.;

(C) on income by way of short-term capital gains referred to in section 111A

15 per cent.;

(D) on other income by way of long-term capital gains [not being long-term capital gains referred to in clauses (33), (36) and (38) of section 10]

20 per cent.;

(E) on income by way of interest payable by Government or an Indian concern on moneys borrowed or debt incurred by Government or the Indian concern in foreign currency (not being income by way of interest referred to in section 194LB or section 194LC)

20 per cent.;

(F) on income by way of royalty payable by Government or an Indian concern in pursuance of an agreement made by it with the

Government or the Indian concern where such royalty is in consideration for the transfer of all or any rights (including the granting of a licence) in respect of copyright in any book on a subject referred to in the first proviso to sub-section (1A) of section 115A of the Income-tax Act, to the Indian concern, or in respect of any computer software referred to in the second proviso to sub-section (1A) of section 115A of the Income-tax Act, to a person resident in India

10 per cent.;

(G) on income by way of royalty [not being royalty of the nature referred to in sub-item (b)(i)(F)] payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern and where such agreement is with an Indian concern, the agreement is approved by the Central Government or where it relates to a matter included in the industrial policy, for the time being in force, of the Government of India, the agreement is in accordance with that policy

10 per cent.;

(H) on income by way of fees for technical services payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern and where such agreement is with an Indian concern, the agreement is approved by the Central Government or where it relates to a matter included in the industrial policy, for the time being in force, of the Government of India, the agreement is in accordance with that policy

10 per cent.;

(I) on income by way of winnings from lotteries, crossword puzzles, card games and other games of any sort

30 per cent.;

(J) on income by way of winnings from horse races

30 per cent.;

(K) on the whole of the other income

30 per cent.;

(ii) in the case of any other person-

(A) on income by way of interest payable by Government or an Indian concern on moneys borrowed or debt incurred by Government or the Indian concern in foreign currency (not being income by way of interest referred to in section 194LB or section 194LC)

20 per cent.;

(B) on income by way of royalty payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern where such royalty is in consideration for the transfer of all or any rights (including the granting of a licence) in respect of copyright in any book on a subject referred to in the first proviso to sub-section (1A) of section 115A of the Income-tax Act, to the Indian concern, or in respect of any computer software referred to in the second proviso to sub-section (1A) of section 115A of the Income-tax Act, to a person resident in India

10 per cent.;

(C) on income by way of royalty [not being royalty of the nature referred to in sub-item (b)(ii)(B)] payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern and where such agreement is with an Indian concern, the agreement is approved by the Central Government or where it relates to a matter included in the industrial policy, for the time being in force, of the Government of India, the agreement is in accordance with that policy

10 per cent.;

(D) on income by way of fees for technical services payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern and where such agreement is with an Indian concern, the agreement is approved by the Central Government or where it relates to a matter included in the industrial policy, for the time being in force, of the Government of India, the agreement is in accordance with that policy

10 per cent.;

(E) on income by way of winnings from lotteries, crossword puzzles, card games and other games of any sort

30 per cent.;

(F) on income by way of winnings from horse races

30 per cent.;

(G) on income by way of short-term capital gains referred to in section 111A

15 per cent.;

(H) on income by way of long-term capital gains referred to in sub-clause (iii) of clause (c) of sub-section (1) of section 112

10 per cent.;

(I) on income by way of other long-term capital gains [not being long-term capital gains referred to in clauses (33),(36) and (38) of section 10]

20 per cent.;

(J) on the whole of the other income

30 per cent.;

2. In the case of a company-

(a) where the company is a domestic company-

(i) on income by way of interest other than "Interest on securities"

10 per cent.;

(ii) on income by way of winnings from lotteries, crossword puzzles, card games and other games of any sort

30 per cent.;

(iii) on income by way of winnings from horse races

30 per cent.;

(iv) on any other income

10 per cent.;

(b) where the company is not a domestic company-

- (i) on income by way of winnings from lotteries, crossword puzzles, card games and other games of any sort
30 per cent.;
- (ii) on income by way of winnings from horse races
30 per cent.;
- (iii) on income by way of interest payable by Government or an Indian concern on moneys borrowed or debt incurred by Government or the Indian concern in foreign currency (not being income by way of interest referred to in section 194LB or section 194LC)
20 per cent.;
- (iv) on income by way of royalty payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern after the 31st day of March, 1976 where such royalty is in consideration for the transfer of all or any rights (including the granting of a licence) in respect of copyright in any book on a subject referred to in the first proviso to sub-section (1A) of section 115A of the Income-tax Act, to the Indian concern, or in respect of any computer software referred to in the second proviso to sub-section (1A) of section 115A of the Income-tax Act, to a person resident in India
10 per cent.;
- (v) on income by way of royalty [not being royalty of the nature referred to in sub-item (b)(iv)] payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern and where such agreement is with an Indian concern, the agreement is approved by the Central Government or where it relates to a matter included in the industrial policy, for the time being in force, of the Government of India, the agreement is in accordance with that policy-
 - (A) where the agreement is made after the 31st day of March, 1961 but before the 1st day of April, 1976
50 per cent.;
 - (B) where the agreement is made after the 31st day of March, 1976
10 per cent.;
- (vi) on income by way of fees for technical services payable by Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern and where such agreement is with an Indian concern, the agreement is approved by the Central Government or where it relates to a matter included in the industrial policy, for the time being in force, of the Government of India, the agreement is in accordance with that policy-
 - (A) where the agreement is made after the 29th day of February, 1964 but before the 1st day of April, 1976
50 per cent.;
 - (B) where the agreement is made after the 31st day of March, 1976

10 per cent.;

(vii) on income by way of short-term capital gains referred to in section 111A

15 per cent.;

(viii) on income by way of long-term capital gains referred to in sub-clause (iii) of clause (c) of sub-section (1) of section 112

10 per cent.;

(ix) on income by way of other long-term capital gains [not being long-term capital gains referred to in clauses (33), (36) and (38) of section 10]

20 per cent.;

(x) on any other income

40 per cent.;

Explanation. - For the purposes of item 1(b)(i) of this Part, "investment income" and "non-resident Indian" shall have the meanings assigned to them in Chapter XII-A of the Income-tax Act.

Surcharge on income-tax

The amount of income-tax deducted in accordance with the provisions of-

(i)
item 1 of this Part, shall be increased by a surcharge, for the purposes of the Union,-

(a)
in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, being a non-resident, calculated,-

I. at the rate of ten per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds fifty lakh rupees but does not exceed one crore rupees;

II. at the rate of fifteen per cent. of such tax, where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds one crore rupees; and

(b)
in the case of every co-operative society or firm, being a non-resident, calculated at the rate of twelve per cent., where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds one crore rupees;

(ii)
Item 2 of this Part shall be increased by a surcharge, for the purposes of the Union, in the case of every company other than a domestic company, calculated,-

(a)
at the rate of two per cent. of such income-tax where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds one crore rupees but does not exceed ten crore rupees; and

(b)
at the rate of five per cent. of such income-tax where the income or the aggregate of such incomes paid or likely to be paid and subject to the deduction exceeds ten crore rupees.

Part III ? Rates for Charging Income-Tax in Certain Cases, Deducting Income-Tax from Income Chargeable under the Head "Salaries" and Computing "Advance Tax"

In cases in which income-tax has to be charged under sub-section (4) of section 172 of the Income-tax Act or sub-section (2) of section 174 or section 174A or section 175 or sub-section (2) of section 176 of the said Act or deducted from, or paid on, from income chargeable under the head "Salaries" under section 192 of the said Act or in which the "advance tax" payable under Chapter XVII-C of the said Act has to be computed at the rate or rates in force, such income-tax or, as the case may be, "advance tax" [not being "advance tax" in respect of any income chargeable to tax under Chapter XII or Chapter XII-A or income chargeable to tax under section 115JB or section 115JC or Chapter XII-FA or Chapter XII-FB or sub-section (1A) of section 161 or section 164 or section 164A or section 167B of the Income-tax Act at the rates as specified in that Chapter or section or surcharge, wherever applicable, on such "advance

tax" in respect of any income chargeable to tax under section 115A or section 115AB or section 115AC or section 115ACA or section 115AD or section 115B or section 115BA or section 115BB or section 115BBA or section 115BBC or section 115BBD or section 115BBDA or section 115BBE or section 115BBF or section 115BBG or section 115E or section 115JB or section 115JC] shall be charged, deducted or computed at the following rate or rates:-

Paragraph A

(I)

In the case of every individual other than the individual referred to in items (II) and (III) of this Paragraph or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act, not being a case to which any other Paragraph of this Part applies,-

Rates of income-tax

(1) where the total income does not exceed Rs. 2,50,000

Nil;

(2) where the total income exceeds Rs. 2,50,000 but does not exceed Rs. 5,00,000

5 per cent. of the amount by which the total income exceeds Rs. 2,50,000;

(3) where the total income exceeds Rs. 5,00,000 but does not exceed Rs. 10,00,000

Rs. 12,500 plus 20 per cent. of the amount by which the total income exceeds Rs. 5,00,000;

(4) where the total income exceeds Rs. 10,00,000

Rs. 1,12,500 plus 30 per cent. of the amount by which the total income exceeds Rs. 10,00,000.

(II)

In the case of every individual, being a resident in India, who is of the age of sixty years or more but less than eighty years at any time during the previous year,-

Rates of income-tax

(1) where the total income does not exceed Rs. 3,00,000

Nil;

(2) where the total income exceeds Rs. 3,00,000 but does not exceed Rs. 5,00,000

5 per cent. of the amount by which the total income exceeds Rs. 3,00,000

(3) where the total income exceeds Rs. 5,00,000 but does not exceed Rs. 10,00,000

Rs. 10,000 plus 20 per cent. of the amount by which the total income exceeds Rs. 5,00,000;

(4) where the total income exceeds Rs. 10,00,000

Rs. 1,10,000 plus 30 per cent. of the amount by which the total income exceeds Rs. 10,00,000

(III)

In the case of every individual, being a resident in India, who is of the age of eighty years or more at any time during the previous year,-

Rates of income-tax

(1) where the total income does not exceed Rs. 5,00,000

Nil;

(2) where the total income exceeds Rs. 5,00,000 but does not exceed Rs. 10,00,000

20 per cent. of the amount by which the total income exceeds Rs. 5,00,000;

(3) where the total income exceeds Rs. 10,00,000
Rs. 1,00,000 plus 30 per cent. of the amount by which
the total income exceeds Rs. 10,00,000.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall be increased by a surcharge for the purposes of the Union, calculated, in the case of every individual or Hindu undivided family or association of persons or body of individuals, whether incorporated or not, or every artificial juridical person referred to in sub-clause (vii) of clause (31) of section 2 of the Income-tax Act,-

(a)

having a total income exceeding fifty lakh rupees but not exceeding one crore rupees, at the rate of ten per cent. of such income-tax; and

(b)

having a total income exceeding one crore rupees, at the rate of fifteen per cent. of such income-tax:

Provided that in the case of persons mentioned above having total income exceeding,-

(a)

fifty lakh rupees but not exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of fifty lakh rupees by more than the amount of income that exceeds fifty lakh rupees;

(b)

one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax and surcharge on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph B

In the case of every co-operative society,-

Rates of income-tax

(1) where the total income does not exceed Rs. 10,000
10 per cent. of the total income;

(2) where the total income exceeds Rs. 10,000 but does not
exceed Rs. 20,000

Rs. 1,000 plus 20 per cent. of the amount by which the
total income exceeds Rs. 10,000;

(3) where the total income exceeds Rs. 20,000
Rs. 3,000 plus 30 per cent. of the amount by which the
total income exceeds Rs. 20,000.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, in the case of every co-operative society, having a total income exceeding one crore rupees, be increased by a surcharge for the purposes of the Union calculated at the rate of twelve per cent. of such income-tax:

Provided that in the case of every co-operative society mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph C

In the case of every firm,-

Rate of income-tax

On the whole of the total income

30 per cent.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of

section 111A or section 112 of the Income-tax Act, shall, in the case of every firm, having a total income exceeding one crore rupees, be increased by a surcharge for the purposes of the Union calculated at the rate of twelve per cent. of such income-tax:

Provided that in the case of every firm mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph D

In the case of every local authority,-

Rate of income-tax

On the whole of the total income

30 per cent.

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, in the case of every local authority, having a total income exceeding one crore rupees, be increased by a surcharge for the purposes of the Union calculated at the rate of twelve per cent. of such income-tax:

Provided that in the case of every local authority mentioned above having total income exceeding one crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees.

Paragraph E

In the case of a company,-

Rate of income-tax

I. In the case of a domestic company,-

(i) where its total turnover or the gross receipt in the previous year 2015-16 does not exceed fifty crore rupees;

25 per cent. of total income.;

(ii) other than that referred to in item (i)

30 per cent. of the total income.;

II. In the case of a company other than a domestic company-

(i)

on so much of the total income as consists of,-

(a) royalties

received from Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern after the 31st day of March, 1961 but before the 1st day of April, 1976; or

(b) fees for

rendering technical services received from Government or an Indian concern in pursuance of an agreement made by it with the Government or the Indian concern after the 29th day of February, 1964 but before the 1st day of April, 1976, and where such agreement has, in either case, been approved by the Central Government

50 per cent.;

(ii) on the balance, if any, of the total income

40 per cent.;

Surcharge on income-tax

The amount of income-tax computed in accordance with the preceding provisions of this Paragraph, or the provisions of section 111A or section 112 of the Income-tax Act, shall, be increased by a surcharge for the purposes of the Union, calculated,-

(i)

in the case of every domestic company,-

(a)

having a total income exceeding one crore rupees but not exceeding ten crore rupees, at the rate of seven per cent. of such income-tax; and

(b)

having a total income exceeding ten crore rupees, at the rate of twelve per cent. of such income-tax;

(ii)

in the case of every company other than a domestic company,-

(a)

having a total income exceeding one crore rupees but not exceeding ten crore rupees, at the rate of two per cent. of such income-tax; and

(b)

having a total income exceeding ten crore rupees, at the rate of five per cent. of such income-tax:

Provided that in the case of every company having a total income exceeding one crore rupees but not exceeding ten crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax on a total income of one crore rupees by more than the amount of income that exceeds one crore rupees:

Provided further that in the case of every company having a total income exceeding ten crore rupees, the total amount payable as income-tax and surcharge on such income shall not exceed the total amount payable as income-tax and surcharge on a total income of ten crore rupees by more than the amount of income that exceeds ten crore rupees.

Part IV ? [See section 2 (13)(c)]

Rules for Computation of Net Agricultural Income

Rule 1. - Agricultural income of the nature referred to in sub-clause (a) of clause (1A) of section 2 of the Income-tax Act shall be computed as if it were income chargeable to income-tax under that Act under the head "Income from other sources" and the provisions of sections 57 to 59 of that Act shall, so far as may be, apply accordingly:

Provided that sub-section (2) of section 58 shall apply subject to the modification that the reference to section 40A therein shall be construed as not including a reference to sub-sections (3), (3A) and (4) of section 40A.

Rule 2. - Agricultural income of the nature referred to in sub-clause (b) or sub-clause (c) of clause (1A) of section 2 of the Income-tax Act [other than income derived from any building required as a dwelling-house by the receiver of the rent or revenue of the cultivator or the receiver of rent-in-kind referred to in the said sub-clause (c)] shall be computed as if it were income chargeable to income-tax under that Act under the head "Profits and gains of business or profession" and the provisions of sections 30, 31, 32, 36, 37, 38, 40, 40A [other than sub-sections (3), (3A) and (4) thereof], 41, 43, 43A, 43B and 43C of the Income-tax Act shall, so far as may be, apply accordingly.

Rule 3. - Agricultural income of the nature referred to in sub-clause (c) of clause (1A) of section 2 of the Income-tax Act, being income derived from any building required as a dwelling-house by the receiver of the rent or revenue or the cultivator or the receiver of rent-in-kind referred to in the said sub-clause (c) shall be computed as if it were income chargeable to income-tax under that Act under the head "Income from house property" and the provisions of sections 23 to 27 of that Act shall, so far as may be, apply accordingly.

Rule 4. - Notwithstanding anything contained in any other provisions of these rules, in a case-

(a)

where the assessee derives income from sale of tea grown and manufactured by him in India, such income shall be computed in accordance with rule 8 of the Income-tax Rules, 1962, and sixty per cent. of such income shall be regarded as the agricultural income of the assessee;

(b)

where the assessee derives income from sale of centrifuged latex or cenex or latex based crepes (such as pale latex crepe) or brown crepes (such as estate brown crepe, re-milled crepe, smoked blanket crepe or flat bark crepe) or technically specified block rubbers manufactured or processed by him from rubber plants grown by him in India, such income shall be computed in accordance with rule 7A of the Income-tax Rules, 1962, and sixty-five per cent. of such income shall be regarded as the agricultural income of the assessee;

(c)

where the assessee derives income from sale of coffee grown and manufactured by him in India, such income shall be

computed in accordance with rule 7B of the Income-tax Rules, 1962, and sixty per cent. or seventy-five per cent., as the case may be, of such income shall be regarded as the agricultural income of the assessee.

Rule 5. - Where the assessee is a member of an association of persons or a body of individuals (other than a Hindu undivided family, a company or a firm) which in the previous year has either no income chargeable to tax under the Income-tax Act or has total income not exceeding the maximum amount not chargeable to tax in the case of an association of persons or a body of individuals (other than a Hindu undivided family, a company or a firm) but has any agricultural income then, the agricultural income or loss of the association or body shall be computed in accordance with these rules and the share of the assessee in the agricultural income or loss so computed shall be regarded as the agricultural income or loss of the assessee.

Rule 6. - Where the result of the computation for the previous year in respect of any source of agricultural income is a loss, such loss shall be set off against the income of the assessee, if any, for that previous year from any other source of agricultural income:

Provided that where the assessee is a member of an association of persons or a body of individuals and the share of the assessee in the agricultural income of the association or body, as the case may be, is a loss, such loss shall not be set off against any income of the assessee from any other source of agricultural income.

Rule 7. - Any sum payable by the assessee on account of any tax levied by the State Government on the agricultural income shall be deducted in computing the agricultural income.

Rule 8. - (1) Where the assessee has, in the previous year relevant to the assessment year commencing on the 1st day of April, 2017, any agricultural income and the net result of the computation of the agricultural income of the assessee for any one or more of the previous years relevant to the assessment years commencing on the 1st day of April, 2009 or the 1st day of April, 2010 or the 1st day of April, 2011 or the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016, is a loss, then, for the purposes of sub-section (2) of section 2 of this Act,-

(i)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2009, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2010 or the 1st day of April, 2011 or the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016,

(ii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2010, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2011 or the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016,

(iii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2011, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016,

(iv)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2012, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016,

(v)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2013, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016,

(vi)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2014, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2015 or the 1st day of April, 2016,

(vii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2015, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2016,

(viii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2016, shall be set off against the agricultural income of the assessee for the previous year relevant to the assessment year commencing on the 1st day of April, 2017.

(2)

Where the assessee has, in the previous year relevant to the assessment year commencing on the 1st day of April, 2018, or, if by virtue of any provision of the Income-tax Act, income-tax is to be charged in respect of the income of a period other than the previous year, in such other period, any agricultural income and the net result of the computation of the agricultural income of the assessee for any one or more of the previous years relevant to the assessment years commencing on the 1st day of April, 2010 or the 1st day of April, 2011 or the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016 or the 1st day of April, 2017, is a loss, then, for the purposes of sub-section (10) of section 2 of this Act,-

(i)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2010, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2011 or the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016 or the 1st day of April, 2017,

(ii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2011, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2012 or the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016 or the 1st day of April, 2017,

(iii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2012, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2013 or the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016 or the 1st day of April, 2017,

(iv)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2013, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2014 or the 1st day of April, 2015 or the 1st day of April, 2016 or the 1st day of April, 2017,

(v)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2014, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2015 or the 1st day of April, 2016 or the 1st day of April, 2017,

(vi)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2015, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2016 or the 1st day of April, 2017,

(vii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2016, to the extent, if any, such loss has not been set off against the agricultural income for the previous year relevant to the assessment year commencing on the 1st day of April, 2017,

(viii)

the loss so computed for the previous year relevant to the assessment year commencing on the 1st day of April, 2017, shall be set off against the agricultural income of the assessee for the previous year relevant to the assessment year

commencing on the 1st day of April, 2018.

(3)

Where any person deriving any agricultural income from any source has been succeeded in such capacity by another person, otherwise than by inheritance, nothing in sub-rule (1) or sub-rule (2) shall entitle any person, other than the person incurring the loss, to have it set off under sub-rule (1) or, as the case may be, sub-rule (2).

(4)

Notwithstanding anything contained in this rule, no loss which has not been determined by the Assessing Officer under the provisions of these rules or the rules contained in the First Schedule to the Finance (No. 2) Act, 2009 (33 of 2009) or the First Schedule to the Finance Act, 2010 (14 of 2010) or the First Schedule to the Finance Act, 2011 (8 of 2011) or the First Schedule to the Finance Act, 2012 (

23 of 2012

) or the First Schedule to the Finance Act, 2013 (17 of 2013) or the First Schedule to the Finance (No. 2) Act, 2014 (25 of 2014

) or the First Schedule to the Finance Act, 2015 (20 of 2015) or the First Schedule to the Finance Act, 2016 (28 of 2016) shall be set off under sub-rule (1) or, as the case may be, sub-rule (2).

Rule 9. - Where the net result of the computation made in accordance with these rules is a loss, the loss so computed shall be ignored and the net agricultural income shall be deemed to be nil.

Rule 10. - The provisions of the Income-tax Act relating to procedure for assessment (including the provisions of section 288A relating to rounding off of income) shall, with the necessary modifications, apply in relation to the computation of the net agricultural income of the assessee as they apply in relation to the assessment of the total income.

Rule 11. - For the purposes of computing the net agricultural income of the assessee, the Assessing Officer shall have the same powers as he has under the Income-tax Act for the purposes of assessment of the total income.

The Second Schedule

[See section 110 (a)]

In the First Schedule to the Customs Tariff Act,-

(a)

in Chapter 20, for the entry in column (4) occurring against tariff item 2008 19 10, the entry "45%" shall be substituted;

(b)

in Chapter 84, for the entry in column (4) occurring against tariff item 8421 99 00, the entry "10%" shall be substituted.

The Third Schedule

[See section 110(b)]

In the First Schedule to the Customs Tariff Act,-

Tariff item

Description of goods

Unit

Rate of Duty Standard

Preferential

(1)

(2)

(3)

(4)

(5)

(1)

in Chapter 11, for tariff item 1106 10 00 and the entries relating thereto, the following shall be substituted, namely:-

"1106 10

- of the dried leguminous vegetables of heading 0713

1106 10 10

--- Guar Meal

kg.

30%

-

1106 10 90

--- Others

kg.

30%

-";

(2)

in Chapter 13, tariff items 1302 32 10 and 1302 32 20 and the entries relating thereto shall be omitted;

(3)

in Chapter 15, after tariff item 1511 90 20 and the entries relating thereto, the following tariff item and entries shall be inserted, namely:-

"1511 90 30

- Refined bleached deodorised palm stearin

kg.

100%

90%";

(4)

in Chapter 38,-

(a)

in heading 3823, for sub-heading 3823 11 and tariff items 3823 11 11 to 3823 11 90 and the entries relating thereto, the following shall be substituted, namely:-

"3823 11 00

- Stearic acid

kg.

30%

-";

(b)

in heading 3824, against tariff item 3824 88 00, in column (2), for the words "hexa-hepta-", the words "hexa-, hepta-" shall be substituted;

(5)

in Chapter 39, in heading 3904, for sub-heading 3904 00 and tariff items 3904 10 10 and 3904 10 90, sub-heading 3904 21, tariff items 3904 21 10 and 3904 21 90 and sub-heading 3904 22, tariff items 3904 22 10 and 3904 22 90 and the entries relating thereto, the following shall be substituted, namely:-#

"3904 10

- Poly (vinyl chloride), not mixed with any

other substances:

3904 10 10

--- Emulsion grade PVC resin / PVC Paste resin/

PVC dispersion resin

kg.

10%

-

3904 10 20

--- Suspension grade PVC resin

kg.

10%

-

3904 10 90

--- Other

kg.

10%

-

- Other poly (vinyl chloride), mixed with other substances:

3904 21 00

- Non-plasticised

kg.

10%

-

3904 22 00

- Plasticised

kg.

10%

-"

(6)

in Chapter 44, against tariff item 4401 22 00, in column (2), for the words "agglomerated, in logs", the words "agglomerated in logs" shall be substituted;

(7)

in Chapter 48, in Note 4, for the word "apply", the word "applies" shall be substituted;

(8)

in Chapter 54, tariff items 5402 59 10 and 5402 69 30 and the entries relating thereto shall be omitted;

(9)

in Chapter 63, in sub-heading Note, for the words "from fabrics", the words "from warp knit fabrics" shall be substituted;

(10)

in Chapter 98,-

(i)

in Chapter Note 4, for clauses (b) and (c), the following clauses shall be substituted, namely:-

"(b) alcoholic beverages; and

(c)

tobacco and manufactured products thereof.";

(ii)

for the entry in column (2) occurring against heading 9804, the entry "All dutiable goods imported for personal use" shall be substituted.

The Fourth Schedule

(See section 111)

In the Second Schedule to the Customs Tariff Act, after Sl. No. 23B and the entries relating thereto, the following Sl. No. and entries shall be inserted, namely:-

(1)

(2)

(3)

(4)

"23C

2606 00 90

Other aluminium ores and concentrates

30%".

The Fifth Schedule

(See section 119)

In the First Schedule to the Central Excise Tariff Act, in Chapter 24,-

(a)

for the entry in column (4) occurring against tariff items 2402 10 10 and 2402 10 20, the entry "12.5% or Rs.4006 per thousand, whichever is higher" shall be substituted;

(b)

for the entry in column (4) occurring against tariff item 2402 90 10, the entry "Rs.4006 per thousand" shall be

substituted;

(c)

for the entry in column (4) occurring against tariff items 2402 90 20 and 2402 90 90, the entry "12.5% or Rs.4006 per thousand, whichever is higher" shall be substituted.

The Sixth Schedule

(See section 129)

Sl. No.

Provisions of the Service Tax (Determination of Value) Rules, 2006 to be amended

Amendment

Period of effect of amendment

(1)

(2)

(3)

(4)

1.

Rule 2A as inserted by notification number

G.S.R. 375(E), dated the 22nd May, 2007 [29/2007-Service Tax, dated the 22nd May, 2007].

In the Service Tax (Determination of Value)

Rules, 2006, in rule 2A,-

(I) in sub-rule (1), in clause (i), after the words "value of transfer of property in goods", the words "or in goods and land or undivided share of land, as the case may be," shall be inserted;

1st day of July, 2010 to 30th day of June, 2012
(both days inclusive).

(II) after sub-rule (1), the following sub-rule shall be inserted, namely:-

1st day of July, 2010 to 30th day of June, 2012
(both days inclusive).

"(2) Where the value has not been determined under sub-rule (1) and the gross amount charged includes the value of goods as well as land or undivided share of land, the service tax shall be payable on twenty-five per cent. of the gross amount charged for the works contract, subject to the following conditions, namely:-
(i) the Cenvat Credit of duty paid on inputs or capital goods or the CENVAT Credit of service tax on input services, used for providing such taxable service, has not been taken under the provisions of the Cenvat Credit Rules, 2004;
(ii) the service provider has not availed the benefit under the notification of the Government of India in the Ministry of Finance (Department of Revenue), No. 12/2003-Service Tax, dated the 20th June, 2003 [G.S.R. 503(E), dated the 20th June, 2003].

Explanation. - For the purposes of this sub-rule, the gross amount charged shall include the value of goods and materials supplied or provided or used for providing the taxable service by the service provider."

2.

Rule 2A as substituted by notification number

G.S.R. 431(E), dated the 6th June, 2012. [24/2012- Service Tax, dated the 6th June, 2012].

In the Service Tax (Determination of Value)

Rules, 2006, in rule 2A,-

(I) in clause (i), after the words "value of property in goods", the words "or in goods and land or undivided share of land, as the case may be," shall be inserted;

1st day of July, 2012 onwards.

(II) in clause (ii), in sub-clause (A),-

1st day of July, 2012 to 28th day of February, 2013 (both days inclusive).

(a) the following proviso shall be inserted, namely:-

"Provided that where the amount charged for works contract includes the value of goods as well as land or undivided share of land, the service tax shall be payable on twenty-five per cent. of the total amount charged for the works contract.";

(b) for the proviso, the following provisos shall be substituted, namely:-

1st day of March, 2013 to 7th day of May, 2013 (both days inclusive).

"Provided that where the amount charged for works contract includes the value of goods as well as land or undivided share of land, the service tax shall be payable on thirty per cent. of the total amount charged for the works contract:

Provided further that in case of works contract for construction of residential units having carpet area up to 2000 square feet or where the amount charged per residential unit from service recipient is less than rupees one crore and the amount charged for the works contract includes the value of goods as well as land or undivided share of land, the service tax shall be payable on twenty-five per cent. of the total amount charged for the works contract.";

(c) for the provisos, the following provisos shall be substituted, namely:-

8th day of May, 2013 to 31st day of March, 2016 (both days inclusive).

"Provided that where the amount charged for works contract includes the value of goods as well as land or undivided share of land, the service tax shall be payable on thirty per cent. of the total amount charged for the works contract:

Provided further that in case of works contract for construction of residential units having carpet area up to 2000 square feet and where the amount charged per residential unit from service recipient is less than rupees one crore and the amount charged for the works contract includes the value of

goods as well as land or undivided share of land, the service tax shall be payable on twenty-five per cent. of the total amount charged for the works contract.";

(d) for the provisos, the following proviso shall be substituted, namely:-

1st day of April, 2016 onwards.

"Provided that where the amount charged for works contract includes the value of goods as well as land or undivided share of land, the service tax shall be payable on thirty per cent. of the total amount charged for the works contract.".

The Seventh Schedule

(See section 150)

In the Seventh Schedule to the Finance Act, 2005,-

(a)

for the entry in column (4) occurring against tariff item 2402 20 10, the entry "Rs. 311 per thousand" shall be substituted;

(b)

for the entry in column (4) occurring against tariff item 2402 20 20, the entry "Rs. 541 per thousand" shall be substituted;

(c)

for the entry in column (4) occurring against tariff item 2402 20 30, the entry "Rs. 311 per thousand" shall be substituted;

(d)

for the entry in column (4) occurring against tariff item 2402 20 40, the entry "Rs. 386 per thousand" shall be substituted;

(e)

for the entry in column (4) occurring against tariff item 2402 20 50, the entry "Rs. 541 per thousand" shall be substituted;

(f)

for the entry in column (4) occurring against tariff item 2402 20 90, the entry "Rs. 811 per thousand" shall be substituted;

(g)

for the entry in column (4) occurring against tariff items 2403 99 10, 2403 99 30 and 2403 99 90, the entry "12%" shall be substituted.

The Eighth Schedule

[See sections 183 and 184]

S.No.

Tribunal/Appellate Tribunal/Board/Authority

Acts

(1)

(2)

(3)

1.

Industrial Tribunal constituted by the Central Government.

The Industrial Disputes Act, 1947 (

14 of 1947

)

2.

Income-Tax Appellate Tribunal

The Income -Tax Act, 1961 (

43 of 1961

)

3.

Customs, Excise and Service Tax Appellate

Tribunal

- The Customs Act, 1962 (52 of 1962)
4. Appellate Tribunal.
The Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976 (13 of 1976)
5. Central Administrative Tribunal
The Administrative Tribunals Act, 1985 (13 of 1985)
6. Railway Claims Tribunal
The Railway Claims Tribunal Act, 1987 (54 of 1987)
7. Securities Appellate Tribunal
The Securities and Exchange Board of India Act, 1992 (15 of 1992)
8. Debts Recovery Tribunal
The Recovery of Debts due to Banks and Financial Institutions Act, 1993 (51 of 1993)
9. Debts Recovery Appellate Tribunal
The Recovery of Debts due to Banks and Financial Institutions Act, 1993 (51 of 1993)
10. Airport Appellate Tribunal
The Airport Authority of India Act, 1994 (55 of 1994)
11. Telecom Disputes Settlement and Appellate Tribunal
The Telecom Regulatory Authority of India Act, 1997 (24 of 1997)
12. Appellate Board
The Trade Marks Act, 1999 (47 of 1999)
13. National Company Law Appellate Tribunal
The Companies Act, 2013 (18 of 2013

)

14.

Authority for Advance Ruling

The Income Tax Act, 1961 (

43 of 1961

)

15.

Film Certification Appellate Tribunal

The Cinematograph Act, 1952 (

37 of 1952

)

16.

National Consumer Disputes Redressal Commission

The Consumer Protection Act, 1986 (

68 of 1986

)

17.

Appellate Tribunal for Electricity

The Electricity Act, 2003 (

36 of 2003

)

18.

Armed Forces Tribunal

The Armed Forces Act, 2007 (

55 of 2007

)

19.

National Green Tribunal

The National Green Tribunal Act, 2010 (19 of
2010).

The Ninth Schedule

[See section 185]

Sl.No.

Tribunal/ Appellate Tribunal under the Acts

Tribunal/Appellate Tribunal/Authority to
exercise the jurisdiction under the Acts.

(1)

(2)

(3)

1.

The Employees Provident Fund Appellate Tribunal
under the Employees Provident Funds and Miscellaneous Provisions
Act, 1952.

The Industrial Tribunal constituted by the
Central Government under the Industrial Disputes Act, 1947.

2.

The Copyright Board under the Copyright Act,
1957.

The Intellectual Property Appellate Board under
the Trade Marks Act, 1999.

3.

The Railway Rates Tribunal under the Railways Act, 1989.

The Railway Claims Tribunal under the Railway Claims Tribunal Act, 1987.

4.

The Appellate Tribunal for Foreign Exchange under the Foreign Exchange Management Act, 1999.

The Appellate Tribunal under the Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976.

5.

The National Highways Tribunal under the Control of National Highways (Land and Traffic) Act, 2002.

The Airport Appellate Tribunal under the Airport Authority of India Act, 1994.

6.

(A) The Cyber Appellate Tribunal under the Information Technology Act, 2000.

The Telecom Disputes

(B) The Airports Economic Regulatory Authority Appellate Tribunal under the Airports Economic Regulatory Authority of India Act, 2008.

Settlement and Appellate Tribunal under the Telecom Regulatory Authority of India Act, 1997.

7.

The Competition Appellate Tribunal under the Competition Act, 2002.

The National Company Law Appellate Tribunal under the Companies Act, 2013."

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